UNDERWRITING AGREEMENT

July 24, 2026

AbraSilver Resource Corp.
220 Bay Street, Suite 550
Toronto, ON
M5J 2W4

Attention: John Miniotis, President and Chief Executive Officer

Dear Sir:

National Bank Financial Inc. ("**NBF**"), Beacon Securities Limited ("**Beacon**"), and Raymond James Ltd. (together with NBF and Beacon, the "**Bookrunners**"), as co-bookrunners, and Scotia Capital Inc. and TD Securities Inc. (collectively with the Bookrunners, the "**Underwriters**" and each individually, an "**Underwriter**") hereby severally, and not jointly, nor jointly and severally, in their respective percentages set out in Section 18 below, offer to purchase from AbraSilver Resource Corp. (the "**Company**") and the Company hereby agrees to issue and sell to the Underwriters, 3,062,000 common shares in the capital of the Company (the "**Initial Shares**") at a price of $14.70 per Initial Share (the "**Offering Price**") for aggregate gross proceeds of $45,011,400.

The Company grants to the Underwriters an option (the "**Over-Allotment Option**") exercisable in whole or in part at any time, and from time to time, until that date which is on or prior to the 30th day following the Closing Date (as defined below), to offer for sale an additional 339,000 common shares of the Company (the "**Over-Allotment Shares**"), at the Offering Price, to cover over-allotments, if any, and for market stabilization purposes. The Underwriters shall be under no obligation to exercise the Over-Allotment Option in whole or in part.

Unless the context otherwise requires, the Initial Shares and Over-Allotment Shares are together referred to in this Agreement (as defined below) as the "**Offered Shares**" and the offering of the Offered Shares by the Company is referred to in this Agreement as the "**Offering**". The Offered Shares shall have the attributes described in and contemplated by the Prospectus (as defined below).

The Company has advised that: (i) it is current in the filing of all materials required to be filed under Canadian Securities Laws (as defined below) of each of the Qualifying Jurisdictions (as defined below); (ii) it has filed the Base Shelf Prospectus (as defined below) in each of the Qualifying Jurisdictions and the Ontario Securities Commission (the "**OSC**"), as principal regulator, has issued a decision document in respect thereof under Passport Procedures (as defined below) on behalf of itself and the other Securities Regulators (as defined below); and (iii) it is qualified to and shall file, as soon as possible after execution of this Agreement, the Prospectus Supplement (as defined below) as a supplement to the Base Shelf Prospectus in accordance with the requirements of NI 44-101 and NI 44-102 (as such terms are defined below).

The Underwriters shall be entitled to appoint a selling group consisting of other registered dealers (each a "**Selling Firm**" and together, the "**Selling Group**") in accordance with Canadian Securities Laws for the purposes of assisting with the Offering. Any investment dealer who is a member of any Selling Group formed by the Underwriters pursuant to the provisions of this Agreement or with whom the Underwriters have a contractual relationship with respect to the Offering, if any, shall agree with the Underwriters to comply with the covenants and obligations given by the Underwriters herein. The fee payable to any such investment dealer who is a member of any Selling Group shall be determined by, and be for the account of, the Underwriters.

The Underwriters propose to distribute the Offered Shares in the Offering Jurisdictions (as defined below), pursuant to the Prospectus and may also offer and sell the Offered Shares in the United States (as defined below) to Qualified Institutional Buyers (as defined below) in transactions exempt from the registration requirements of the U.S. Securities Act (as defined below) pursuant to Rule 144A thereunder and applicable U.S. state securities laws pursuant to the U.S. Private Placement Memorandum (as defined below), all in the manner contemplated by this Agreement, including in accordance with Schedule "A" hereto, which terms and conditions are hereby incorporated by reference in and shall form a part of this Agreement. The parties acknowledge and agree that none of the Offered Shares have been, and will not be, registered under the U.S. Securities Act, or the securities laws of any state of the United States.

Subject to Applicable Laws (as defined below), including applicable Securities Laws (as defined below) and the terms of this Agreement, the Offered Shares may also be distributed outside of Canada and the United States, in each jurisdiction as mutually agreed to by the Company and the Underwriters where they may be lawfully sold by the Underwriters without: (i) giving rise to any requirement under the laws of such jurisdiction to prepare and/or file a prospectus, registration statement or document having similar effect; or (ii) creating any ongoing compliance or continuous disclosure obligations for the Company pursuant to the laws of such jurisdiction.

In consideration of the services to be rendered by the Underwriters in connection with the Offering, the Company agrees to pay to the Underwriters the Commission (as defined below) at the Closing Time (as defined below).

Subject to compliance with Canadian Securities Laws and the disclosure concerning the same contained in the Prospectus, without affecting the firm obligation of the Underwriters to purchase from the Company 3,062,000 Initial Shares at the Offering Price in accordance with this Agreement, after the Underwriters have made reasonable efforts to sell all of the Offered Shares at the Offering Price, the Offering Price may be decreased by the Underwriters and further changed from time to time to an amount not greater than the Offering Price specified herein. Such decrease in the Offering Price will not affect the Commission to be paid by the Company to the Underwriters, and it will not decrease the amount of the net proceeds of the Offering to be paid by the Underwriters to the Company, before deducting expenses of the Offering. The Underwriters will inform the Company if the Offering Price is decreased.

In addition to and concurrent with the Offering, the Company may complete a private placement offering (the "**Concurrent Private Placement**") of Common Shares of the Company at the Offering Price in connection with the exercise of a participation right held by (i) Kinross Gold Corporation ("**Kinross**") pursuant to an investor rights agreement between Kinross and the Company dated April 26, 2024 (the "**Kinross IRA**"), and (ii) Proener SAU ("**Central Puerto**") pursuant to an investor rights agreement between Central Puerto and the Company dated April 26, 2024 (the "**Central Puerto IRA**"). Should the Over-Allotment Option be exercised, Kinross and Central Puerto will have the option to purchase additional Common Shares under the Concurrent Private Placement in accordance with the terms of the Kinross IRA and the Central Puerto IRA, respectively. In the event that the Concurrent Private Placement proceeds, closing of the Concurrent Private Placement is expected to occur concurrently with or shortly following the closing of the Offering subject to certain conditions including, but not limited to, the receipt of all necessary approvals, including the conditional approval from the Stock Exchange (as defined below).

TERMS AND CONDITIONS

The following are additional terms and conditions of this Agreement between the Company and the Underwriters:

Section 1 Definitions and Interpretation

(1) Where used in this Agreement or in any amendment hereto, the following terms have the following meanings, respectively:

"**affiliate**", "**associate**", "**insider**" and "**person**" have the respective meanings given to them in the Securities Act;

"**Agreement**" means this underwriting agreement, as it may be amended from time to time;

"**Applicable Laws**" means all applicable laws, rules, regulations, policies, statutes, ordinances, codes, orders, consents, decrees, judgments, decisions, rulings, awards, or guidelines, the terms and conditions of any permits, including any judicial or administrative interpretation thereof, of any Governmental Authority;

"**Base Shelf Prospectus**" means the (final) short form base shelf prospectus of the Company dated December 16, 2025, including all of the Documents Incorporated by Reference therein;

"**Bookrunners**" has the meaning ascribed thereto in the opening paragraphs of this Agreement;

"**Business Day**" means a day, other than a Saturday, a Sunday or statutory or civic holiday in the City of Toronto, Ontario;

"**Canadian Securities Laws**" means, collectively, all applicable Securities Laws of each of the Qualifying Jurisdictions and the respective rules and regulations under such laws together with applicable published instruments, notices and orders of the securities regulatory authorities in the Qualifying Jurisdictions, including the rules and policies of the Stock Exchange;

"**Central Puerto**" has the meaning ascribed thereto in the opening paragraphs of this Agreement;

"**Central Puerto IRA**" has the meaning ascribed thereto in the opening paragraphs of this Agreement;

"**Claims**" has the meaning ascribed thereto in Section 14 of this Agreement;

"**Closing**" means the completion of the sale of the Offered Shares and the purchase by the Underwriters of the Offered Shares pursuant to this Agreement;

"**Closing Date**" means July 29, 2026 or such earlier or later date as may be agreed to in writing by the Company and the Bookrunners, each acting reasonably;

"**Closing Time**" means 7:45 a.m. (Toronto time) on the Closing Date or the Option Closing Date, as applicable, or such other time on the Closing Date or the Option Closing Date as may be agreed to by the Company and the Bookrunners;

"**Commission**" has the meaning ascribed thereto in Section 15 of this Agreement;

"**Common Shares**" means common shares in the capital of the Company;

"**Company**" has the meaning ascribed thereto in the opening paragraphs of this Agreement;

"**Company's Auditor**" means Crowe Mackay LLP;

"**Concurrent Private Placement**" has the meaning ascribed thereto in the opening paragraphs of this Agreement;

"**Debt Instrument**" means any and all loans, bonds, notes, debentures, indentures, promissory notes, mortgages, guarantees or other instruments evidencing indebtedness (demand or otherwise) for borrowed money or other liability to which the Company or a Subsidiary are a party or to which their property or assets are otherwise bound;

"**Diablillos Project**" means the Company's indirectly wholly-owned mineral project in the Salta and Catamarca Provinces of Argentina referred to as the Diablillos project, as further described in the Public Record and the Diablillos Technical Report;

"**Diablillos Technical Report**" means the report titled "NI 43-101 Technical Report, Feasibility Study for the Diablillos Ag-Au Project" with an effective date of June 19, 2026 and report date of July 20, 2026;

"**distribution**" means distribution or distribution to the public, as the case may be, for the purposes of Canadian Securities Laws or any of them;

"**Documents Incorporated by Reference**" means all financial statements, related management's discussion and analysis, management information circulars, joint information circulars, annual information forms, material change reports or other documents filed by the Company, whether before or after the date of this Agreement, that are required by applicable Canadian Securities Laws to be incorporated by reference into the Prospectus;

"**Employee Plans**" has the meaning ascribed thereto in Section 8(1)(ll) of this Agreement;

"**Enforceability Qualifications**" means: (i) bankruptcy, insolvency, reorganization, moratorium and other laws relating to or affecting the rights of creditors generally; (ii) the application of equitable principles when equitable remedies are sought, including the remedies of specific performance and injunctive relief; and (iii) Applicable Laws limiting rights to indemnity, contribution, waiver, and the ability to sever unenforceable terms;

"**Engagement Letter**" means the letter agreement dated July 22, 2026 between the Company and the Bookrunners, regarding the Offering;

"**Environmental Authorities**" means Governmental Authorities having jurisdiction under any Environmental Laws, including any department, commission, bureau, board, administrative agency or body of any applicable international, federal, provincial, state, municipal or local body;

"**Environmental Laws**" means all applicable international, federal, provincial, state, municipal and local treaties, conventions, laws, statutes, ordinances, by-laws, codes, regulations, and all policies, guidelines, standards, orders, directives and decisions rendered or promulgated by any ministry, department or administrative or regulatory agency or body whatsoever (including international organizations formed by or participated in by any national, provincial or state government or representatives thereof) relating to mining;

"**Environmental Permits**" means all permits, licenses and authorizations required under Environmental Laws required in connection with the conduct and operation of the Company's business;

"**Financial Statements**" means (i) the audited consolidated financial statements of the Company for the years ended December 31, 2025 and 2024, together with the notes thereto and report of the Company's Auditor thereon and (ii) the unaudited condensed interim consolidated financial statements of the Company for the three months ended March 31, 2026 and 2025, together with the notes thereto, and in each case, any amendments thereto;

"**Governmental Authority**" means any federal, provincial, state, municipal, county or regional governmental or quasi-governmental authority, domestic or foreign, and includes any ministry, department, commission, bureau, board, administrative or other agency or regulatory body or instrumentality thereof;

"**Hazardous Substances**" means any contaminant, pollutant, dangerous substance, liquid waste, industrial waste, hauled liquid waste, toxic substance, special waste, hazardous waste, hazardous material or hazardous substance as defined in or pursuant to any Environmental Laws, law, judgment, decree, order, injunction, rule, statute or regulation of any court, arbitrator or Governmental Authority by which the Company is bound or to which the Company is subject;

"**IFRS**" means International Financial Reporting Standards as issued by the International Accounting Standards Board;

"**Indemnified Party**" or "**Indemnified Parties**" have the meanings ascribed thereto in Section 14 of this Agreement;

"**Initial Shares**" has the meaning ascribed thereto in the opening paragraphs of this Agreement;

"**IT Systems**" has the meaning ascribed thereto in Section 8(1)(qqq) of this Agreement;

"**Kinross**" has the meaning ascribed thereto in the opening paragraphs of this Agreement;

"**Kinross IRA**" has the meaning ascribed thereto in the opening paragraphs of this Agreement;

"**La Coipita Project**" means the Company's indirectly wholly-owned mineral project located in San Juan province, Argentina referred to as the La Coipita project, as further described in the Public Record;

"**Liens**" means any encumbrance or title defect of whatever kind or nature, regardless of form, whether or not registered or registrable and whether or not consensual or arising by law (statutory or otherwise), including any mortgage, lien, charge, pledge or security interest, whether fixed or floating, or any assignment, lease, option, right of pre-emption, privilege, encumbrance, easement, servitude, right of way, restrictive covenant, right of use or any other right or claim of any kind or nature whatever which affects ownership or possession of, or title to, any interest in, or right to use or occupy such property or assets;

"**Marketing Document**" means the term sheet dated July 22, 2026 for the Offering agreed to between the Company and the Bookrunners;

"**Marketing Materials**" has the meaning ascribed to such term in NI 41-101 and for greater certainty, includes the Marketing Document;

"**material adverse effect**" means any event, change, fact, or state of being which could reasonably be expected to have: (i) a significant and adverse effect on the business, affairs, capital, operation,

properties, permits, assets, liabilities (absolute, accrued, contingent or otherwise), condition (financial or otherwise) or prospects of the Company and the Subsidiaries considered on a consolidated basis; or (ii) cause any of the Offering Documents to contain a misrepresentation;

"**material change**", "**material fact**" and "**misrepresentation**" have the respective meanings ascribed thereto in the Securities Act;

"**Material Subsidiaries**" means, collectively, Huayra Minerals Corp., ABP Global Inc., ABP Diablillos Inc., Pacific Rim Mining Corporation Argentina S.A., Condoryacu SRL and AbraPlata Argentina S.A.;

"**MI 11-102**" means Multilateral Instrument 11-102 – *Passport System*;

"**Money Laundering Laws**" has the meaning ascribed to such term in Section 8(1)(nnn) of this Agreement;

"**NI 41-101**" means National Instrument 41-101 – *General Prospectus Requirements*;

"**NI 43-101**" means National Instrument 43-101 - *Standards of Disclosure for Mineral Projects*;

"**NI 44-101**" means National Instrument 44-101 - *Short Form Prospectus Distributions*;

"**NI 44-102**" means National Instrument 44-102 – *Shelf Distributions*;

"**NI 51-102**" means National Instrument 51-102 – *Continuous Disclosure Obligations*;

"**NI 52-109**" means National Instrument 52-109 – *Certification of Disclosure in Issuers' Annual and Interim Filings*;

"**NP 11-202**" means National Policy 11-202 – *Process for Prospectus Reviews in Multiple Jurisdictions*;

"**Offered Shares**" has the meaning ascribed thereto in the opening paragraphs of this Agreement;

"**Offering**" has the meaning ascribed thereto in the opening paragraphs of this Agreement;

"**Offering Documents**" means the Prospectus and the U.S. Private Placement Memorandum;

"**Offering Jurisdictions**" means all the provinces and territories of Canada, other than Québec;

"**Offering Price**" has the meaning ascribed thereto in the opening paragraphs of this Agreement;

"**Option Closing Date**" means any date upon which a Closing pursuant to the exercise of the Over-Allotment Option occurs;

"**OSC**" has the meaning ascribed thereto in the opening paragraphs of this Agreement;

"**Over-Allotment Option**" has the meaning ascribed thereto in the opening paragraphs of this Agreement;

"**Over-Allotment Shares**" has the meaning ascribed thereto in the opening paragraphs of this Agreement;

"**Passport Procedures**" means the procedures for review of prospectus filing provided under NP 11-202 and MI 11-102 among the Securities Regulators;

"**person**" shall be broadly interpreted and shall include any individual, corporation, partnership, joint venture, association, trust or other legal entity;

"**Personal Data**" has the meaning ascribed thereto in Section 8(1)(qqq) of this Agreement;

"**Properties**" means the Diablillos Project and the La Coipita Project;

"**Prospectus**" means, collectively, the Base Shelf Prospectus, the Prospectus Supplement and any Prospectus Amendment;

"**Prospectus Amendment**" means, collectively, any amendment to the Prospectus Supplement, and any ancillary materials that may be filed by or on behalf of the Company under any of the Canadian Securities Laws relating to the distribution of the Offered Shares under applicable Canadian Securities Laws;

"**Prospectus Supplement**" means the prospectus supplement to the Base Shelf Prospectus, to be dated the date hereof, and including the Documents Incorporated by Reference therein;

"**Public Record**" means collectively, all of the documents which have been filed on www.sedarplus.ca since January 1, 2023 by or on behalf of the Company with the Securities Regulators pursuant to the requirements of Canadian Securities Laws;

"**Qualifying Jurisdictions**" means all the provinces and territories of Canada;

"**Regulation D**" means Regulation D adopted by the SEC under the U.S. Securities Act;

"**Regulation S**" means Regulation S adopted by the SEC under the U.S. Securities Act;

"**Sanctioned Country**" has the meaning ascribed to such term in Section 8(1)(ooo) of this Agreement;

"**Sanctions**" has the meaning ascribed to such term in Section 8(1)(ooo) of this Agreement;

"**SEC**" means the United States Securities and Exchange Commission;

"**Securities Act**" means the *Securities Act* (Ontario);

"**Securities Laws**" means collectively, Canadian Securities Laws, U.S. Securities Laws and all applicable securities laws, rules, regulations, policies and other instruments promulgated by the Securities Regulators in any of the other Selling Jurisdictions;

"**Securities Regulators**" means collectively, the securities regulators or other securities regulatory authorities in the Qualifying Jurisdictions;

"**SEDAR+**" means the System for Electronic Data Analysis and Retrieval + of the Canadian Securities Administrators;

"**Selling Firm**" and "**Selling Group**" have the meanings ascribed thereto in the opening paragraphs of this Agreement;

"**Selling Jurisdictions**" means, collectively, each of the Offering Jurisdictions and may also include the United States and any other jurisdictions outside of Canada and the United States as mutually agreed to by the Company and the Underwriters;

"**Stock Exchange**" means the Toronto Stock Exchange;

"**Subsidiaries**" means, collectively, the Material Subsidiaries, Agrogir Trading Ltd., AbraPlata Corporate Services Ltd., AbraSilver US Resources Corp. and Aethon Minerals Corp.;

"**subsidiary**" or "**subsidiaries**" has the meaning ascribed thereto in the Securities Act;

"**template version**" has the meaning ascribed thereto under NI 41-101 and includes any revised template version of marketing materials as contemplated by NI 41-101;

"**Transfer**" has the meaning ascribed thereto in Section 9(3) of this Agreement;

"**Transfer Agent**" means TSX Trust Company, in its capacity as transfer agent and registrar of the Common Shares, at its principal office in Vancouver, British Columbia;

"**Underwriters**" has the meaning ascribed thereto in the opening paragraphs of this Agreement;

"**United States**" means the United States of America, its territories and possessions, any state of the United States and the District of Columbia;

"**U.S. Affiliate**" means the United States registered broker dealer affiliate of an Underwriter;

"**U.S. Exchange Act**" means the United States Securities Exchange Act of 1934, as amended, and the rules and regulations promulgated by the SEC thereunder;

"**U.S. Private Placement Memorandum**" means the private placement offering memorandum prepared in connection with the offering of the Offered Shares in the United States to Qualified Institutional Buyers pursuant to Rule 144A of the U.S. Securities Act, which will include and supplement the Prospectus;

"**U.S. Securities Act**" means the United States Securities Act of 1933, as amended, and the rules and regulations promulgated by the SEC thereunder; and

"**U.S. Securities Laws**" means all applicable securities legislation in the United States, including, without limitation, the U.S. Exchange Act and U.S. Securities Act.

(2) Any reference in this Agreement to a section or subsection shall refer to a section or subsection of this Agreement.

(3) All words and personal pronouns relating thereto shall be read and construed as the number and gender of the party or parties referred to in each case required and the verb shall be construed as agreeing with the required word and/or pronoun.

(4) Any reference in this Agreement to $ or to "dollars" shall refer to the lawful currency of Canada, unless otherwise specified.

(5) The following are the schedules to this Agreement, which schedules are deemed to be a part hereof and are hereby incorporated by reference herein:

Schedule "A" – Compliance with United States Securities Laws
Schedule "B" – Subsidiaries

Section 2 Attributes of the Offered Shares.

(1) The Offered Shares to be sold by the Company hereunder shall have the rights, privileges, restrictions and conditions that conform in all material respects to the rights, privileges, restrictions and conditions set forth in the Offering Documents.

(2) The Underwriters severally, and not jointly, nor jointly and severally, agree not to offer or sell the Offered Shares in such a manner as to require registration of any of them or the filing of a prospectus, registration statement or any similar document under the laws of any jurisdiction outside the Offering Jurisdictions and to distribute or offer the Offered Shares only in accordance with all Applicable Laws. However, the Company and each Underwriter acknowledge that, in the event of any offer or sale of the Offered Shares in the United States, the Underwriters acting directly or through one or more of their U.S. Affiliates will offer the Offered Shares in accordance with Schedule "A" which terms and conditions are hereby incorporated by reference in and shall form a part of this Agreement, provided that no such action on the part of the Underwriters or their U.S. Affiliates shall in any way oblige the Company to register any Offered Shares under the U.S. Securities Laws or the securities laws of any state of the United States.

(3) Notwithstanding the foregoing, an Underwriter will not be liable to the Company under this section or Schedule "A" with respect to a violation by another Underwriter or its U.S. Affiliate(s) of the provisions of this section or Schedule if the former Underwriter or its U.S. Affiliate, as applicable, is not itself also in violation.

Section 3 Certain Obligations of the Company

(1) As soon as practicable after the execution of this Agreement, the Company will prepare and file the Prospectus Supplement, including copies of any documents or information incorporated by reference therein, with the Securities Regulators, and in any event no later than 11:00 p.m. (Toronto time) on the date hereof and will have taken all other steps and proceedings that may be necessary in order to qualify the Offered Shares for distribution in each of the Offering Jurisdictions by the Underwriters and other persons who are registered in a category permitting them to distribute the Offered Shares under Canadian Securities Laws and who comply with Canadian Securities Laws.

(2) Until the distribution of the Offered Shares has been completed, the Company will permit the Underwriters and their counsel to participate fully in the preparation of, and to approve the form of, the Prospectus Supplement, review any Documents Incorporated by Reference therein and to conduct all due diligence investigations that they reasonably require in order to fulfil their obligations as Underwriters under Canadian Securities Laws and in the case of the Prospectus Supplement, to enable the Underwriters to responsibly execute any certificate required to be executed by them.

(3) Until the distribution of the Offered Shares has been completed, the Company will promptly take or cause to be taken all additional steps and proceedings that from time to time may be required under Canadian Securities Laws to continue to qualify the Offered Shares for distribution in the Offering Jurisdictions or in the event that the Offered Shares have, for any reason, ceased to so qualify, to again so qualify the Offered Shares and to ensure that the Offered Shares are freely tradable in the Offering Jurisdictions, except for a trade that is a control distribution (within the meaning of Canadian Securities Laws).

(4) Until the distribution of the Offered Shares has been completed, the Company will provide to the Underwriters and their counsel reasonable access to the officers, employees, facilities, books and records of the Company and its Subsidiaries during normal business hours in order to conduct all due diligence which the Underwriters may reasonably require to conduct in order to fulfill their obligations as Underwriters and in order to enable the Underwriters to execute any certificate in the Prospectus Supplement required to be executed by them. During such period, the Company will make available its directors, officers, the authors of the Diablillos Technical Report, the Company's Auditor and Canadian legal counsel to the Company to answer any questions which any of the Underwriters may have, acting reasonably, and to participate in one or more due diligence sessions to be held prior to the Closing Time.

(5) For greater certainty and as the context requires, any reference or covenants herein by the Company with respect to the qualification of the Offered Shares shall also include qualification of the Over-Allotment Option for the benefit of the Underwriters.

Section 4 Distribution of the Offered Shares, Marketing Materials and Certain Obligations of the Underwriters

(1) During the course of the distribution of the Offered Shares by or through the Underwriters, the Underwriters will offer and sell the Offered Shares only in the Selling Jurisdictions where they may be lawfully offered for sale or sold and in compliance with Securities Laws. The Underwriters will not solicit offers to purchase or sell the Offered Shares so as to require registration thereof or filing of a prospectus, registration statement or similar document with respect thereto, or that will result in the Company being subject to continuous disclosure or similar obligations under the laws of any jurisdiction (other than the Qualifying Jurisdictions), including the United States.

(2) The Underwriters will use their reasonable best efforts to complete, and to cause the Selling Firms to complete, the distribution of the Offered Shares as promptly as possible and the Underwriters will promptly notify the Company in writing of the completion of the distribution of the Offered Shares. Following the Closing Date, the Bookrunners will provide the Company with such information as it may require with respect to the proceeds realized in each of the Offering Jurisdictions from the distribution of the Offered Shares for the purpose of payment of filing fees and as to distribution of the Offered Shares for the purposes of listing the Offered Shares on the Stock Exchange.

(3) For the purposes of this Section 4, the Underwriters and the Selling Firms will, subject to receipt of any notification by the Company to the contrary or notification under Section 6(1), be entitled to assume that the Offered Shares are qualified for distribution in the Offering Jurisdictions. The Underwriters agree, and will require each Selling Firm to agree, to cease the distribution of the Offered Shares upon the Underwriter receiving written notification of any change or material fact with respect to any Offering Document contemplated by Section 6 and to not recommence the distribution of the Offered Shares until any required disclosure (if any) with respect to such change or fact is filed in the Qualifying Jurisdictions.

(4) In connection with the distribution of the Offered Shares:

(a) the Company may prepare, in consultation with the Bookrunners, and approve in writing, prior to the time the Marketing Materials are provided to potential investors, a template version of any of the Marketing Materials that the Company and the Bookrunners agree will be provided by the Underwriters to any potential investor; such Marketing Materials shall comply with and be acceptable in form and substance to the Bookrunners, acting

reasonably, and such template version shall be approved in writing by the Bookrunners, prior to the time the Marketing Materials are provided to potential investors;

(b) the Company shall file the template version of the Marketing Materials referred to in Section 4(4)(a) above, with the Securities Regulators as soon as reasonably practicable after the template version of the Marketing Materials is so approved in writing by the Company and by the Bookrunners and in any event on or before the day the Marketing Materials are first provided to any potential investor; and

(c) any comparables shall be redacted from the template version of the Marketing Materials in accordance with NI 41-101 prior to filing such template version with the Securities Regulators and a complete template version containing such comparables and any disclosure relating to the comparables, if any, shall be delivered to the Securities Regulators by the Company as required by Canadian Securities Laws.

(5) Following the approvals and filings set forth in the foregoing paragraphs, the Underwriters may provide a limited-use version of the Marketing Materials to potential investors to the extent permitted by Canadian Securities Laws.

(6) The Company shall prepare and file a revised template version of any Marketing Materials provided to potential investors in connection with the Offering where required under Canadian Securities Laws, and the foregoing paragraphs above shall also apply to such revised template version.

(7) During the period of distribution of the Offered Shares, the Company and the Underwriters covenant and agree:

(a) not to provide any potential investor with any Marketing Materials unless a template version of such Marketing Materials has been or will be filed by the Company with the Securities Regulators on or before the day such Marketing Materials are first provided to any potential investor; and

(b) not to provide any potential investor with any materials or information in relation to the distribution of the Offered Shares other than: (i) such Marketing Materials for which the template versions thereof have been approved and filed in accordance with the foregoing paragraphs, (ii) the Prospectus in accordance with this Agreement, and (iii) any standard term sheet (as defined in NI 41-101) approved in writing by the Company and the Bookrunners.

(8) No Underwriter will be liable under this Section 4 with respect to a default by any of the other Underwriters or a Selling Firm appointed by any of the other Underwriters.

Section 5 Delivery of the Prospectus and Related Matters

(1) Delivery of the Offering Documents in Canada will be satisfied in accordance with the "access equals delivery" provisions contained in Part 6A of NI 44-102 and the Underwriters and the Company shall satisfy any request for electronic or paper copies of the Offering Documents in accordance with the requirements of NI 44-102, without charge.

(2) Contemporaneously with or prior to the filing of the Prospectus Supplement or any Prospectus Amendment, as the case may be, if requested by the Underwriters (or any one of them), the

Company will deliver to the Underwriters (and in the case of Section 5(2)(b) below the Company will use its commercially reasonable efforts to deliver), without charge:

(a) copies of the Offering Documents, as the case may be, including all Documents Incorporated by Reference therein; and

(b) a copy of any other document required to be filed by the Company in compliance with Canadian Securities Laws,

provided that with respect to clauses (a) and (b) of this Section 5(2), if the Documents Incorporated by Reference are available on SEDAR+, they shall be deemed to have been delivered to the Underwriters as required by this Section 5(2).

(3) Concurrently with the filing of the Prospectus Supplement and any Prospectus Amendment, the Company shall cause to be delivered to the Underwriters a "long form" comfort letter from the Company's Auditor dated the date of the Prospectus Supplement, in form and substance satisfactory to the Bookrunners, acting reasonably, addressed to the Underwriters and the board of directors of the Company relating to the verification of financial and accounting information and other numerical data of a financial nature contained in or incorporated or deemed to be incorporated by reference in the Prospectus and matters involving changes or developments since the respective dates as of which specified financial information is given in the Prospectus Supplement, and containing statements and information of the type ordinarily included in "comfort letters" to Underwriters in connection with an offering of securities, to a date not more than two Business Days prior to the date of such letter.

(4) In the event that the Company is required to prepare a Prospectus Amendment, the Company will also prepare and deliver promptly to the Underwriters signed and certified copies of such Prospectus Amendment along with all Documents Incorporated by Reference therein that have not been previously delivered to the Underwriters; provided that if such Documents Incorporated by Reference are available on SEDAR+, they shall be deemed to have been delivered to the Underwriters as required by this Section 5(4). Any Prospectus Amendment will be in form and substance satisfactory to the Bookrunners, acting reasonably.

(5) Each delivery of the Prospectus by the Company to the Underwriters will constitute the consent of the Company to the use of such document, as applicable, in connection with the Offering and will constitute the representation and warranty of the Company to the Underwriters that, at the respective times of such delivery:

(a) all information and statements (except information and statements relating solely to the Underwriters and provided by the Underwriters in writing expressly for inclusion therein) contained therein:

(i) are true and correct in all material respects and contain no misrepresentation; and

(ii) constitute full, true and plain disclosure of all material facts relating to the Offered Shares and to the Company and its Subsidiaries considered as a whole;

(iii) do not contain an untrue statement of a material fact or omit to state a material fact required to be stated therein or necessary to make the statements therein not misleading in light of the circumstances in which they were made; and

(iv) comply with Canadian Securities Laws at the time filed and at the time when it is first sent or delivered to a purchaser or potential purchaser.

Section 6 Material Change.

(1) During the period from the date of this Agreement to the completion of the distribution of the Offered Shares, the Company covenants and agrees with the Underwriters that it shall promptly notify the Underwriters in writing with full particulars of:

(a) any material change (actual, anticipated, contemplated or threatened) in respect of the Company or the Subsidiaries considered on a consolidated basis;

(b) any material fact in respect of the Company which has arisen or has been discovered and would have been required to have been stated in any of the Offering Documents had the fact arisen or been discovered on, or prior to, the date of such document; and

(c) any change in any material fact (which for the purposes of this Agreement shall be deemed to include the disclosure of any previously undisclosed material fact) contained in the Offering Documents which fact or change is, or may be, of such a nature as to render any statement in such Offering Document misleading or untrue in any material respect or which would result in a misrepresentation in the Offering Document or which would result in any of the Offering Documents not complying (to the extent that such compliance is required) with Securities Laws.

(2) During the period from the date of this Agreement to the completion of the distribution of the Offered Shares, the Company shall promptly, and in any event within any applicable time limitation, comply, to the satisfaction of the Bookrunners, acting reasonably, with all applicable filings and other requirements under Canadian Securities Laws and U.S. Securities Laws as a result of such fact or change; provided that the Company shall not file any Prospectus Amendment or other document without first providing the Bookrunners with a copy of such Prospectus Amendment or other document and consulting with the Bookrunners with respect to the form and content thereof. The Company shall in good faith discuss with the Bookrunners any fact or change in circumstances (actual, anticipated, contemplated or threatened, financial or otherwise) which is of such a nature that there is or could be reasonable doubt whether written notice need be given under this Section 6.

(3) If during the period of distribution of the Offered Shares there shall be any change in Canadian Securities Laws or other laws which results in any requirement to file a Prospectus Amendment, the Company will promptly prepare and file such Prospectus Amendment with the appropriate Securities Regulators where such filing is required, provided that the Company shall have allowed the Bookrunners and their counsel to participate in the preparation and review of any Prospectus Amendment.

(4) During the period from the date of this Agreement to the completion of the distribution of the Offered Shares, the Company will notify the Bookrunners promptly:

(a) when any Prospectus Amendment has been filed;

(b) of any request by any Securities Regulator for any Prospectus Amendment or for additional information;

(c) of the suspension of the qualification of any of the Offered Shares for offering, sale, issuance, or grant, as applicable, in any jurisdiction, or of any order suspending or preventing the use of the Offering Documents (or any Prospectus Amendment) or of the institution or, to the knowledge of the Company, threatening of any proceedings for any such purpose; and

(d) of the issuance by any Securities Regulator or any stock exchange of any order having the effect of ceasing or suspending the distribution of the Common Shares or the trading in any securities of the Company, or of the institution or, to the knowledge of the Company, threatening of any proceeding for any such purpose and the Company will use its reasonable best efforts to prevent the issuance of any such stop order or of any order preventing or suspending such use or such order ceasing or suspending the distribution of the Common Shares or the trading in the shares of the Company and, if any such order is issued, to obtain the lifting thereof at the earliest possible time.

Section 7 Regulatory Approvals.

The Company will make all necessary filings, obtain all necessary consents and approvals (if any) and pay all filing fees required to be paid in connection with the transactions contemplated by this Agreement. The Company will cooperate with the Underwriters in connection with the qualification of the Offered Shares for offer and sale and the grant of the Over-Allotment Option, under Canadian Securities Laws and in maintaining such qualifications in effect for so long as required for the distribution of the Offered Shares.

Section 8 Representations and Warranties of the Company.

(1) The Company represents and warrants to each of the Underwriters, and acknowledges that each of them is relying upon such representations and warranties in connection with the purchase of the Offered Shares, that:

(a) the Company is a valid and subsisting company duly incorporated and in good standing under the laws of British Columbia, and the Company's only subsidiaries are the Subsidiaries and the only subsidiaries that are material to the Company and its business, assets and operations are the Material Subsidiaries;

(b) the Company is a reporting issuer in good standing under the Securities Laws of the Qualifying Jurisdictions and no material change relating to the Company has occurred with respect to which the requisite material change report has not been filed under any applicable Securities Laws in such provinces and no such disclosure has been made on a confidential basis;

(c) the Subsidiaries are valid and subsisting companies duly incorporated and in good standing under their respective jurisdictions of incorporation, except as would not reasonably be expected to have a material adverse effect;

(d) there are no material changes or material facts relating to the Company that have not been publicly disclosed in accordance with the requirements of Securities Laws, the Securities Act, and the rules and policies of the Stock Exchange;

(e) the Public Record is in all material respects accurate and omits no material facts, the omission of which would make the Public Record or any particulars therein misleading or incorrect at the time such statements were made (other than with respect to any disclosure

that was subsequently amended or corrected, as may be applicable) and does not contain a misrepresentation;

(f) the Company has not made any significant acquisition as such term is defined in Part 8 of NI 51-102 in the current financial year or prior financial years and for which a business acquisition report has not been filed under NI 51-102, the Company has not entered into any agreement or arrangement in respect of a transaction that would be a significant acquisition for the purposes of Part 8 of NI 51-102, and there are no proposed acquisitions by the Company that have progressed to the state where a reasonable person would believe that the likelihood of the Company completing such acquisition is high and would be a significant acquisition for the purposes of Part 8 of NI 51-102 if completed as of the date of the Offering Documents;

(g) the Diablillos Project is the only mineral property which is material to the Company and the Company and the Subsidiaries are the absolute legal and beneficial owners of the Properties as described in the Public Record and the related mining rights under valid, subsisting and enforceable title documents or other recognized and enforceable agreements or instruments, sufficient to permit the Company and/or the Subsidiaries to conduct the business of the Company and/or the Subsidiaries as is currently conducted or anticipated to be conducted;

(h) the mining rights of the Company and the Material Subsidiaries in respect of the Properties have been validly registered and/or recorded in accordance with all Applicable Laws in all material respects and are in good standing, are valid and enforceable, are free and clear of any Liens and other than as disclosed in the Public Record, no royalty is payable in respect of any of them;

(i) the Company and the Subsidiaries have all necessary property rights, surface or access rights, water rights, rights of way, ingress and egress rights and other necessary rights and interests relating to the Properties as are necessary for the conduct of the Company's or the Subsidiaries' operations as currently conducted, and there are no material restrictions on the ability of the Company or the Subsidiaries to use, transfer, access or explore any such property rights as currently contemplated other than such restrictions set out in the instruments granting such rights or as would not reasonably be expected to have a material adverse effect;

(j) to the knowledge of the Company, all mineral exploration activities on the Properties have been conducted in accordance with good mining and engineering practices and all applicable workers' compensation and health and safety and workplace laws, regulations and policies have been duly complied with;

(k) the Company and the Subsidiaries are up to date in all material respects with all corporate filings required to be made;

(l) the authorized and issued share capital of the Company consists of an unlimited number of Common Shares, of which 161,952,332 Common Shares were issued and outstanding as fully paid and non-assessable as at the date hereof. Other than 4,676,000 Company stock options and 730,004 restricted share units of which nil are currently vested, there are no outstanding options, warrants, rights to acquire, or securities convertible into Common Shares as at the date hereof, and upon their issue, the Offered Shares will not be subject to any pre-emptive right or other similar contractual right to acquire such Offered Shares

granted by the Company or to which the Company is subject, other than pursuant to the Kinross IRA and the Central Puerto IRA;

(m) the share capital and jurisdiction of incorporation of the Subsidiaries is as set out in Schedule "B" and is true and correct. All of the issued and outstanding shares in the capital of each Subsidiary have been duly authorized and validly issued, are fully paid and are directly or indirectly beneficially owned by the Company, free and clear of any Liens, and none of the outstanding securities of any Subsidiary was issued in violation of the pre-emptive or similar rights of any security holder of such Subsidiary. There exist no options warrants, purchase rights, or other contracts or commitments that could require the Company to sell, transfer or otherwise dispose of any securities of any Subsidiary;

(n) no act or proceeding has been taken by or against the Company or the Subsidiaries in connection with their liquidation, winding-up or bankruptcy, or is pending;

(o) the form of certificate respecting the Offered Shares has been approved and adopted by the board of directors of the Company and does not conflict with any Applicable Laws and complies with the applicable rules and regulations of the Stock Exchange;

(p) the Company is not subject to the reporting requirements of Section 13(a) or 15(d) of the U.S. Exchange Act;

(q) the Common Shares are currently listed and posted for trading on the Stock Exchange and the OTCQX Best Market and the Company has not taken any action which would reasonably be expected to result in the delisting or suspension of the Common Shares from the Stock Exchange or the OTCQX Best Market;

(r) prior to Closing, the Stock Exchange will have conditionally approved the Offering and the listing of the Offered Shares on the Stock Exchange subject to completion of the steps to be taken and the filing of the documents set out in the conditional approval letter from the Stock Exchange in respect of the Offering;

(s) no order ceasing or suspending trading in the securities of the Company nor prohibiting the sale of such securities has been issued to the Company or its directors, officers or promoters and no investigations or proceedings for such purposes are pending or threatened;

(t) the Company has full corporate power and authority to undertake the Offering of and to issue the Offered Shares and to enter into this Agreement;

(u) the Company and its Subsidiaries have all necessary corporate power and capacity to own or lease its property and assets and to carry on its business as presently conducted,;

(v) all necessary corporate action has been taken by the Company to authorize the execution and delivery of this Agreement, and the performance of its obligations under this Agreement, upon execution hereof by the Company, this Agreement will constitute a valid and legally binding obligation of the Company enforceable against the Company in accordance with its terms, except as enforcement thereof may be limited by the Enforceability Qualifications;

(w) the execution and delivery of this Agreement by the Company, the performance by the Company of its obligations hereunder and the issuance, delivery and sale of the Offered Shares do not and will not (whether after the passage of time or notice or both) result in:

(i) the breach or violation of any of the provisions of, or constitute a default under, or a conflict with or cause the acceleration of, any obligation of the Company or any of its Subsidiaries under:

(A) any indenture, contract, mortgage, note, agreement (written or oral), lease or other instrument to which the Company is a party or by which it or its properties are bound or affected and which is material to the Company;

(B) any provision of the articles, notice of articles or resolutions of the board of directors (or any committee thereof) or shareholders of the Company;

(C) any judgment, decree, order or award of any Governmental Authority having jurisdiction over the Company or any of its Subsidiaries;

(D) any licence, permit, approval, consent or authorization issued to, held by or for the benefit of the Company or any of its Subsidiaries or necessary to the operation of their businesses as now conducted and which is material to the Company; or

(E) any Applicable Law or statute, or any ordinance, rule, regulation, policy, order or ruling made thereunder; or

(ii) the creation or imposition of any Lien, claim or other demand whatsoever on any of the property or assets of the Company or any of its Subsidiaries;

(x) neither the Company nor any of the Subsidiaries is in default of any term, covenant or condition under or in respect of any (i) judgment, decree, order or award of any Governmental Authority, or (ii) indenture, contract, mortgage, debt instrument, note, agreement (written or oral), lease or other instrument to which it is a party or to which it or any of the material properties or assets (including any royalty or interest therein) are or may be bound, except as would not reasonably be expected, individually or in the aggregate, to have a material adverse effect. No event has occurred and is continuing, and no circumstance exists which has not been waived, which constitutes a default or would entitle any other party thereto to accelerate the maturity of any amount owing thereunder or other material obligation of the Company or any of its Subsidiaries, except as would not reasonably be expected, individually or in the aggregate, to have a material adverse effect;

(y) no filing with, or authorization, approval, consent, license, order, registration, qualification or decree of any court or Governmental Authority or agency is necessary or required for the performance by the Company of its obligations hereunder, in connection with the Offering in the Offering Jurisdictions, or the consummation of the transactions contemplated by this Agreement, except such as have been already obtained, or as may be required, under applicable Securities Laws;

(z) the Company and each of its Subsidiaries has been and is, and the business has been and is operated, in compliance in all material respects with all applicable Environmental Laws and to the best of the Company's knowledge no condition exists or event has occurred which, with or without notice or the passage of time or both, would constitute a material violation of or give rise to a material liability under any applicable Environmental Laws;

(aa) the Company or one of its Subsidiaries has obtained all Environmental Permits required for the operation of the Company's business, or any part thereof, as currently carried on. Each Environmental Permit is valid, subsisting and in good standing and the Company or the applicable Subsidiary is not in default or breach of any Environmental Permit and no proceeding is pending or to the knowledge of the Company, threatened to revoke, amend or limit any Environmental Permit other than as would not reasonably be expected to result in a material adverse effect;

(bb) neither the Company nor any Subsidiary has used or permitted to be used any of its assets or facilities, whether owned, leased, occupied, controlled or licensed or which it owned, leased, occupied, controlled or licensed at any prior time, to generate, manufacture, process, distribute, use, treat, store, dispose of, transport or handle any Hazardous Substance except in compliance in all material respects with the Environmental Permits and all applicable Environmental Laws;

(cc) neither the Company nor any Subsidiary has received any notice of or been prosecuted for an offence alleging violation of or non-compliance with any Environmental Law, and neither has settled any allegation of violation or non-compliance short of prosecution. The Company is not aware of any orders, audits, evaluations of Environmental Authorities relating to environmental matters requiring any work, repairs, construction or capital expenditures to be made with respect to the business or any property, facilities or assets (whether currently owned, leased, occupied, controlled or licensed or owned, leased, occupied, controlled or licensed at any time prior to the date hereof) of the Company;

(dd) neither the Company nor any Subsidiary has caused, allowed or permitted, or has any knowledge of, the release of any Hazardous Substance into the environment, in any manner whatsoever, or the presence of any Hazardous Substance on, under, around or from any of its properties, facilities or other assets (whether owned, leased, occupied, controlled or licensed), or any property, facility or other asset which it owned, controlled, occupied, licensed or leased at any time prior to the date hereof, or any such release or presence on or from a property, facility or other asset owned, leased, occupied, managed, controlled or licensed by third parties but with respect to which the Company is or may reasonably be alleged to have liability. All Hazardous Substances used in whole or in part by the Company or any Subsidiary or resulting from the Company's business have been disposed of, treated or stored in material compliance with all Environmental Permits and all Environmental Laws;

(ee) neither the Company nor any Subsidiary has received any notice from any Environmental Authority that the Company's business or the operation of any of the Company's property, facilities or other assets is in violation of any Environmental Law or any Environmental Permit or that it is responsible (or potentially responsible) for the clean-up of any Hazardous Substances at, on or beneath any of its property, facilities or other assets (whether currently owned, leased, occupied, managed, controlled or licensed, or owned, leased, occupied, managed, controlled or licensed at any time prior to the date hereof), or at, on or beneath any other land or in connection with any waste or contamination migration

to or from any of the Company or any of the Subsidiaries' property, facilities or other assets;

(ff) to the knowledge of the Company, the Company is not the subject of any international, foreign, federal, provincial, municipal or private action, suit, litigation, arbitration proceeding, governmental proceeding, investigation or claim involving a demand for damages or other potential liability with respect to violations of Environmental Laws or Environmental Permits;

(gg) there are no actions, suits, proceedings or inquiries before or by any Governmental Authority pending or, to the knowledge of the Company, threatened against or affecting the Company or its Subsidiaries, business, operations or assets, which has or is likely to have a material adverse effect or which in any way affects or may affect the completion of the transactions contemplated by this Agreement;

(hh) the Company and its Subsidiaries are not involved in any labour or employment dispute nor is any such dispute threatened;

(ii) the Company and its Subsidiaries are in material compliance with all provisions of all federal, national, regional, provincial, local and foreign laws and regulations respecting employment and employment practices, term and conditions employment and wages and hours;

(jj) the Company and its Subsidiaries are currently in material compliance with all workers' compensation, occupational health and safety and similar legislation, including payment in full of all amounts owing thereunder and there are no pending claims or outstanding orders against either of them under applicable workers' compensation legislation, occupational health and safety or similar legislation nor has any event occurred which may give rise to any such material claim;

(kk) the Company and its Subsidiaries are not party to any collective bargaining agreement with their employees and to knowledge of the Company no action has been taken or is being contemplated to organize or unionize any of the Company's and its Subsidiaries' employees;

(ll) the Company has complied in all material respects with the requirements under Canadian Securities Laws to include in the Offering Documents disclosure with respect to each plan for retirement, bonus, stock purchase, profit sharing, stock option, deferred compensation, severance or termination pay, insurance, medical, hospital, dental, vision care, drug, sick leave, disability, salary continuation, legal benefits, unemployment benefits, vacation, incentive or otherwise contributed to, or required to be contributed to, by the Company for the benefit of any current or former director, officer, employee or consultant of the Company (the "**Employee Plans**"), each of which has been maintained in all material respects with its terms and with the requirements prescribed by any and all statutes, orders, rules and regulations that are applicable to such Employee Plans;

(mm) to the knowledge of the Company there are no judgments against the Company which are unsatisfied, nor are there any consent decrees or injunctions to which the Company is subject;

(nn) there are no material claims or actions with respect to aboriginal or native rights currently pending or, to the knowledge of the Company, threatened with respect to the Company or the Subsidiaries or the Properties. To the knowledge of the Company there are no material land entitlement claims or aboriginal land claims having been asserted or any legal actions relating to aboriginal or community issues having been instituted with respect to the Properties, and no material dispute between the Company or any Subsidiary and any local or aboriginal or native group exists or is threatened or imminent with respect to the Properties;

(oo) the Company and the Subsidiaries maintain good relationships with the communities and persons affected by or located on the Properties in all material respects, and there are no material complaints, issues, proceedings, or discussions, which are ongoing or anticipated which could have the effect of interfering, delaying or impairing the ability of the Company and the Subsidiaries to develop and operate the Properties;

(pp) the Company and the Subsidiaries maintain a good working relationship with all Governmental Authorities in the jurisdictions in which their Properties are located, or in which they otherwise carry on their business or operations. All such government relationships are intact and mutually cooperative and there exists no condition or state of fact or circumstances in respect thereof, that would prevent the Company or the Subsidiaries from conducting its business and all activities in connection with its Properties as currently conducted or proposed to be conducted and there exists no actual or threatened termination, limitation, modification or material change in the Company's or Material Subsidiaries' working relationship with any Governmental Authorities;

(qq) no part of the Properties or related mining rights or permits have been taken, revoked, condemned or expropriated by any Governmental Authority nor has any written notice or proceedings in respect thereof been given, commenced, threatened or is pending, nor does the Company have any knowledge of the intent or proposal to give such notice or commence any such proceedings;

(rr) there are no actions, proceedings, inquiries, disruptions, dispute grievance, arbitration, proceeding protests, blockades or initiatives or other conflict with employees of the Company or the Subsidiaries, non-governmental organizations, activist groups or similar entities or persons, that are ongoing or, to the knowledge of the Company, anticipated, which could materially adversely affect the ability of the Company or the Subsidiaries from developing and operating the Properties;

(ss) the Company and its Subsidiaries maintain insurance against such losses, risks and damages to their properties and assets in such amounts that are customary for the business in which they are engaged and on a basis consistent with reasonably prudent persons in comparable businesses, and all of the policies in respect of such insurance coverage are in good standing, in full force and effect in all respects and not in default. Each of the Company and the Subsidiaries are in compliance with the terms of such policies and instruments in all material respects and there are no material claims by the Company or the Subsidiaries under any such policy or instrument as to which any insurance company is denying liability or defending under a reservation of rights clause. The Company has no reason to believe that it will not be able to renew such existing insurance coverage as and when such coverage expires or to obtain similar coverage from similar insurers as may be necessary to continue its business at a cost that would not have a material adverse effect,

and neither the Company nor any of the Subsidiaries have failed to promptly give any notice of any material claim thereunder;

(tt) the Company has complied and will comply in all material respects with the requirements of all applicable corporate and Securities Laws, including without limitation, the Securities Laws in relation to the issue and trading of its securities and in all matters relating to the Offering;

(uu) the Financial Statements present fairly, in all material respects, the financial position of the Company as at the dates set out therein and the results of its operations and the changes in its financial position for the periods then ended, in accordance with IFRS applied on a consistent basis and do not contain any misrepresentations, with respect to the periods covered by the Financial Statements and there has been no change in accounting policies or practices of the Company since December 31, 2025;

(vv) there are no off-balance sheet transactions, arrangements, obligations (including contingent obligations) or other relationships of the Company with unconsolidated entities or other persons that may have a material current or future effect on the financial condition, changes in financial condition, results of operations, earnings, cash flow, liquidity, capital expenditures, capital resources, or significant components or revenues or expenses of the Company or that would reasonably be expected to be material to an investor in making a decision to purchase the Offered Shares;

(ww) the Company does not have any liabilities, obligations, commitments, whether accrued, absolute, contingent or otherwise other than as are either reflected in the Financial Statements, or which could not reasonably be expected to be material to the Company;

(xx) the Company maintains, and will maintain, a system of internal accounting controls sufficient to provide reasonable assurance that: (i) transactions are executed in accordance with management's general or specific authorizations; (ii) transactions are recorded as necessary to permit preparation of financial statements in conformity with IFRS and to maintain asset accountability; (iii) access to assets is permitted only in accordance with management's general or specific authorization; and (iv) the recorded accountability for assets is compared with the existing assets at reasonable intervals and appropriate action is taken with respect to any differences;

(yy) the Company maintains "disclosure controls and procedures" (as that term is defined in NI 52-109) that comply in all material respects with the requirements of Canadian Securities Laws;

(zz) since December 31, 2025, there has been no change in the Company's internal control over financial reporting that has materially affected or would reasonably be expected to materially affect the Company's internal control over financial reporting;

(aaa) the Company's Auditor is an independent public accountant as required under Canadian Securities Laws and there has not been a "reportable event" (as that term is defined in NI 51-102) with such auditor;

(bbb) the audit committee's responsibilities and composition comply with National Instrument 52-110 – *Audit Committees*;

(ccc) except as would not reasonably be expected to have a material adverse effect, the Company and its Subsidiaries have conducted and are conducting their business in material compliance with all Applicable Laws of each jurisdiction in which their businesses are carried on and hold all material licences, registrations, permits, consents or qualifications (whether governmental, regulatory or otherwise) required in order to enable their businesses to be carried on as now conducted or as proposed to be conducted, and all such licences, registrations, permits, consents and qualifications are valid and subsisting and in good standing and the Company and its Subsidiaries have not received any notice of proceedings relating to the revocation or modification of any such license, registration, permit, consent or qualification which, if the subject of an unfavourable decision, ruling or finding;

(ddd) the Company has filed all documents that it is required to file under the periodic and timely disclosure provisions of applicable Canadian Securities Laws, the policies of the Stock Exchange, and any order issued by or an undertaking to the Securities Regulators in the Qualifying Jurisdictions including annual and interim financial information, technical reports, press releases disclosing material changes and material change reports;

(eee) except as would not reasonably be expected to have a material adverse effect, the Company and each of its Subsidiaries has duly and on a timely basis filed all tax returns required to be filed by it, has paid all taxes due and payable by it and has paid all assessments and re-assessments and all other taxes, governmental charges, penalties, interest and other fines due and payable by it and which are claimed by any Governmental Authority to be due and owing except where the failure to pay such taxes would not result in a material adverse effect and adequate provision has been made for taxes payable for any completed fiscal period for which tax returns are not yet required and there are no agreements, waivers or other arrangements providing for an extension of time with respect to the filing of any tax return or payment of any tax, governmental charge or deficiency by the Company or any of its Subsidiaries and there are no audits, actions, suits, proceedings, investigations or claims pending, or to the knowledge of the Company, threatened against the Company or any of its Subsidiaries in respect of taxes, governmental charges or assessments or any matters under discussion with any Governmental Authority relating to taxes, governmental charges or assessments asserted by any such authority and there are no Liens for taxes on the assets of the Company or any of its Subsidiaries except for taxes not yet due;

(fff) neither the Company nor any company "associated" (as defined in the *Income Tax Act* (Canada)) with the Company is party to any agreement for the issuance of Common Shares for which the required expenditures have not been incurred;

(ggg) neither the Company nor its Subsidiaries have made any loans to or secured or guaranteed the obligations of any person other the Company and its Subsidiaries ;

(hhh) to the best knowledge of the Company, none of the directors or officers of the Company are now, or have ever been, subject to an order or ruling of any securities' regulatory authority or stock exchange prohibiting such individual from currently acting as a director or officer of a public company;

(iii) as of the Closing Time, TSX Trust Company, at its principal office in Vancouver, British Columbia has been duly appointed as the registrar and transfer agent of the Company in respect of its Common Shares;

(jjj) all scientific and technical information set forth in the Public Record and the Offering Documents, relating to any mining properties in which the Company, directly or indirectly, holds an interest has been reviewed by the Company and a "qualified person", as defined in NI 43-101, and all such information has been prepared in accordance with NI 43-101, and all exploration results with respect to such mining properties set forth in the Public Record and the Offering Documents have been verified by a "qualified person" and the information upon which such results was based, was, at the time of delivery thereof, complete and accurate in all material respects and there have been no material changes to such information since the date of preparation thereof which have not been disclosed;

(kkk) with respect to forward-looking information contained in the Public Record and the Offering Documents:

(i) the Company had a reasonable basis for the forward-looking information at the time the disclosure was made; and

(ii) all such documents caution users of forward-looking information that actual results may vary from the forward-looking information and identifies material risk factors that could cause actual results to differ materially from the forward-looking information; and states the material factors or assumptions used to develop forward-looking information;

(lll) the minute books and corporate records of the Company and its Subsidiaries made available to Underwriters and their counsel in connection with due diligence investigations of the Company for the periods from their respective dates of incorporation, continuance or amalgamation, as the case may be, to the date of examination thereof are the original minute books and records of the Company and each Subsidiary, as applicable, and contain copies of all proceedings (or certified copies thereof) of the shareholders, the board of directors and all committees of the board of directors of the Company and each Subsidiary and there have been no other material meetings, resolutions or proceedings of the shareholders, board of directors or any committee of the board of directors of the Company or any of it Subsidiaries prior to the date of such review of the corporate records and minute books by Underwriters and their counsel which were not reflected in such minute books and other corporate records. All other information which has been prepared by the Company relating to the Company, the Subsidiaries and their business, Properties, assets and liabilities and provided to the Underwriters and their counsel, including all financial, marketing, sales and operational information provided to the Underwriters and their counsel, is, as of the date of such information, true and correct in all material respects, and to the best knowledge of the Company no fact or facts have been omitted therefrom which would make such information misleading;

(mmm) neither the Company nor the Subsidiaries nor, to the knowledge of the Company, any director, officer, employee, consultant, representative or agent of the foregoing, has (i) violated any anti-bribery or anti-corruption laws applicable to the Company and the Subsidiaries, including but not limited to *the U.S. Foreign Corrupt Practices Act* and Canada's *Corruption of Foreign Public Officials Act*, or (ii) offered, paid, promised to pay, or authorized the payment of any money, or offered, given, promised to give, or authorized the giving of anything of value, that goes beyond what is reasonable and customary and/or of modest value: (X) to any government official, whether directly or through any other person, for the purpose of influencing any act or decision of a government official in his or her official capacity; inducing a government official to do or omit to do any act in violation

of his or her lawful duties; securing any improper advantage; inducing a government official to influence or affect any act or decision of any Governmental Authority; or assisting any representative of the Company or the Subsidiaries in obtaining or retaining business for or with, or directing business to, any person; or (Y) to any person in a manner which would constitute or have the purpose or effect of public or commercial bribery, or the acceptance of or acquiescence in extortion, kickbacks, or other unlawful or improper means of obtaining business or any improper advantage. Neither the Company nor the Subsidiaries nor any director, officer, employee, consultant, representative or agent of foregoing, has (i) conducted or initiated any review, audit, or internal investigation that concluded the Company, a Subsidiary or any director, officer, employee, consultant, representative or agent of the foregoing violated such laws or committed any material wrongdoing, or (ii) made a voluntary, directed, or involuntary disclosure to any Governmental Authority responsible for enforcing anti-bribery or anti-corruption laws, in each case with respect to any alleged act or omission arising under or relating to non-compliance with any such laws, or received any notice, request, or citation from any person alleging non-compliance with any such laws;

(nnn) the operations of the Company and each Subsidiary are and have been conducted at all times in material compliance with applicable financial recordkeeping and reporting requirements of the money laundering statutes of all jurisdictions, the rules and regulations thereunder and any related or similar rules, regulations or guidelines, issued, administered or enforced by any Governmental Authority (collectively, the "**Money Laundering Laws**") and no action, suit or proceeding by or before any court of Governmental Authority or any arbitrator or non-governmental authority involving the Company or any Subsidiary with respect to the Money Laundering Laws is pending or, to the knowledge of the Company, threatened;

(ooo) neither the Company nor any of its Subsidiaries, nor any director or officer of the Company or its Subsidiaries, nor, to the knowledge of the Company, any agent, employee or representative of the Company or its Subsidiaries, affiliate or other person associated with or acting on behalf of the Company or its Subsidiaries is currently the subject or target of any sanctions administered or enforced by the United States government (including, without limitation, the Office of Foreign Assets Control of the United States Treasury Department or the United States Department of State and including, without limitation, the designation as a "specially designated national" or "blocked person"), the United Nations Security Council, the European Union, His Majesty's Treasury or other relevant sanctions authority (collectively, "**Sanctions**"), nor is the Company or any of its Subsidiaries located, organized or resident in a country or territory that is the subject or the target of Sanctions, including, without limitation, Russia, Cuba, Iran, North Korea, the Crimean region, and Syria (each, a "**Sanctioned Country**"); and the Company will not directly or indirectly use the proceeds of the offering of the Offered Shares hereunder, or lend, contribute or otherwise make available such proceeds to any Subsidiary, joint venture partner or other person or entity (i) to fund or facilitate any activities of or business with any person that, at the time of such funding or facilitation, is the subject or the target of Sanctions, (ii) to fund or facilitate any activities of or business in any Sanctioned Country; or (iii) in any other manner that will result in a violation by any person (including any person participating in the transaction, whether as underwriter, advisor, investor or otherwise) of Sanctions. The Company and its Subsidiaries have not, for the past five years, knowingly engaged in, are not now knowingly engaged in, and will not engage in, any dealings or transactions with any person that at the time of the dealing or transaction is or was the subject or the target of Sanctions or with any Sanctioned Country.

(ppp) none of the directors, officers or employees of the Company, any known holder of more than 10% of any class of securities of the Company or securities of any person exchangeable for more than 10% of any class of securities of the Company, or any known associate or affiliate of any of the foregoing persons or companies, has had any interest, direct or indirect, in any material transaction within the previous two years or any proposed material transaction which, as the case may be, materially affected or is reasonably expected to materially affect the Company and the Subsidiaries, on a consolidated basis. Neither the Company nor the Subsidiaries have any loans or other indebtedness outstanding which has been made to any of its shareholders, officers, directors or employees, past or present, or any person not dealing at "arm's length" (as such term is used in the *Income Tax Act* (Canada)) with them;

(qqq) each of the Company's and its Subsidiaries' information technology assets and equipment, computers, systems, networks, hardware, software, websites, applications, and databases (collectively, "**IT Systems**") are adequate for, and operate and perform in all material respects as required in connection with the operation of the business of each of the Company and its Subsidiaries as currently conducted, free and clear of all bugs, errors, defects, Trojan horses, time bombs, malware and other corruptants, except as would not reasonably be expected to, individually or in the aggregate, result in a material adverse effect. Each of the Company and its Subsidiaries have implemented and maintained commercially reasonable controls, policies, procedures, and safeguards to maintain and protect their material confidential information and the integrity, continuous operation, redundancy and security of all IT Systems and data (including all personal, personally identifiable, sensitive, confidential or regulated data ("**Personal Data**")) used in connection with their businesses, and to the knowledge of the Company, there have been no breaches, violations, outages or unauthorized uses of or accesses to same, except for those that have been remedied without material cost or liability or the duty to notify any other person, nor any incidents under internal review or investigations relating to the same; each of the Company and its Subsidiaries is presently in compliance with Applicable Law, internal policies and contractual obligations relating to the privacy and security of IT Systems and Personal Data in all material respects and has taken commercially reasonable steps to protect such IT Systems and Personal Data from unauthorized use, access, misappropriation or modification. Each of the Company and its Subsidiaries have taken all necessary actions to comply in all material respects with the Canada's *Personal Information Protection and Electronic Documents Act* (and all other Applicable Laws and regulations with respect to Personal Data);

(rrr) the Company and its Subsidiaries, as applicable, own or possess the right to use all material patents, trademarks, trademark registrations, service marks, service mark registrations, trade names, copyrights, licences, inventions, trade secrets and rights necessary for the conduct of their respective businesses, and the Company is not aware of any bona fide claim to the contrary or any challenge by any other person to the rights of the Company and the Subsidiaries with respect to the foregoing. To the knowledge of the Company, the Company's business, including that of the Subsidiaries, as now conducted does not, and as currently proposed to be conducted will not, infringe or conflict with in any material respect patents, trademarks, service marks, trade names, copyrights, trade secrets, licences or other intellectual property or franchise right of any person. No bona fide claim has been made against the Company or the Subsidiaries alleging the infringement by the Company or the Subsidiaries of any patent, trademark, service mark, trade name, copyright, trade secret, licence in or other intellectual property right or franchise right of any person;

(sss) other than as have been provided to Underwriters and their counsel or available on www.sedarplus.ca, the Company is not a party to any material contracts or agreements ;

(ttt) other than the Company or as contemplated by the Engagement Letter or this Agreement, there is no person that is or will be entitled to demand some or any part of the net proceeds of the Offering;

(uuu) other than the Company and the Material Subsidiaries or as disclosed in the Public Record or the Offering Documents, no entity owns, or hold any rights to, directly or indirectly, any of the Properties;

(vvv) upon issue, the Offered Shares shall be duly and validly authorized for issuance and sale pursuant to this Agreement and when issued and delivered by the Company pursuant to this Agreement, against full payment of the consideration therefor, will be validly issued as fully paid and non-assessable Common Shares and such Offered Shares will not be issued in violation of any pre-emptive rights or contractual rights to purchase securities issued by the Company;

(www) except as provided for in this Agreement or as disclosed in the Prospectus Supplement in relation to the Concurrent Private Placement, there is no person, firm or company acting or purporting to act for the Company entitled to any brokerage or finder's fees in connection with this Agreement or any of the transactions contemplated herein and in the event that any person, firm or company acting or purporting to act for the Company establishes a claim for any fee from the Underwriters (otherwise than as a result of any actions of the Underwriters), the Company covenants to indemnify and hold harmless the Underwriters with respect thereto and with respect to all costs reasonably incurred in the defence thereof;

(xxx) the U.S. Private Placement Memorandum has been prepared in a form customary for a private placement offering of equity securities of a Canadian foreign private issuer in the United States pursuant to Rule 144A of the U.S. Securities Act to Qualified Institutional Buyers, and similar exemptions under applicable securities laws of any state of the United States, concurrent with a public offering in Canada, and does not and will not contain any material disclosures regarding the Company or its Subsidiaries other than as set forth in the Prospectus or in any Prospectus Amendment, if any, in each case, that is included therein;

(yyy) subject to the qualifications and limitations described under "Eligibility for Investment" in the Prospectus, the Initial Shares and Over-Allotment Shares will be qualified investments under the *Income Tax Act* (Canada) and the regulations thereunder for trusts governed by registered retirement savings plans, registered retirement income funds, registered education savings plans, deferred profit sharing plans, a registered disability savings plan and tax free savings accounts;

(zzz) the Company has complied, in all material respects, with its obligations under the Kinross IRA and the Central Puerto IRA in connection with the Offering;

(aaaa) the Company is eligible to file a short form prospectus in each of the Qualifying Jurisdictions pursuant to applicable Canadian Securities Laws and upon filing of the Prospectus Supplement there will be no documents required to be filed under the Canadian Securities Laws in connection with the distribution of the Offered Shares that will not have been filed as required;

(bbbb) during the previous 12 months, the Company has not, directly or indirectly, declared or paid any dividend or declared or made any other distribution on any of its shares or securities of any class, or, directly or indirectly, redeemed, purchased or otherwise acquired any of its Common Shares or securities or agreed to do any of the foregoing. There are no restrictions upon or impediments to, the declaration or payment of dividends by the directors of the Company or the payment of dividends by the Company in the constating document, except as disclosed in the Public Record or the Offering Documents;

(cccc) except as described or disclosed in the Offering Documents, none of the directors, officers or employees of the Company, any known holder of more than 10% of any class of securities of the Company or securities of any person exchangeable for more than 10% of any class of securities of the Company, or any known associate or affiliate of any of the foregoing persons or companies (as such terms are defined in the Securities Act), has had any material interest, direct or indirect, in any material transaction within the previous two years or any proposed material transaction which, as the case may be, materially affected or is reasonably expected to materially affect the Company and any Subsidiary, on a consolidated basis. Neither the Company nor any Subsidiary has any material loans or other indebtedness outstanding which has been made to any of its shareholders, officers, directors or employees, past or present, or any person not dealing at "arm's length" (within the meaning of the *Income Tax Act* (Canada)) with them; and

(dddd) to the knowledge of the Company, no insider of the Company has a present intention to sell any securities of the Company.

Section 9 Covenants of the Company

The Company covenants and agrees with the Underwriters, and acknowledges that each of them is relying on such covenants in connection with the purchase of the Offered Shares, as follows:

(1) The Company will advise the Underwriters, promptly after receiving notice thereof, of the time when the Offering Documents have been filed and will provide evidence reasonably satisfactory to the Underwriters of such filing.

(2) The Company agrees that, without the prior written consent of the Bookrunners, on behalf of the Underwriters, such consent not to be unreasonably withheld or delayed, it will not issue or sell, agree to issue or sell, or announce an intention to issue or sell, any additional Common Shares or any securities or financial instruments, convertible into, or exercisable, redeemable or exchangeable for Common Shares , during the period commencing on the date of the Engagement Letter and ending on the day which is 90 days following the Closing Date, other than: (i) pursuant to the Offering, including any Common Shares issued pursuant to the Over-Allotment Option; (ii) in connection with the exercise of anti-dilution rights under agreements existing as at the date of the Engagement Letter, including any Common Shares issued pursuant to the Concurrent Private Placement; (iii) in connection with grants of awards under the Company's share compensation plan; (iv) to satisfy obligations under any outstanding or subsequently granted awards under the Company's long-term incentive plan or in respect of any existing agreements or instruments existing as at the date of the Engagement Letter; or (v) in connection with an arm's length acquisition transaction.

(3) The Company shall use commercially reasonable efforts to cause its directors, senior officers, and insiders to enter into a lock-up agreement to be executed concurrently with the closing of the Offering, pursuant to which each such persons shall agree that for a period of 90 days from the

Closing Date, each will not, except with the prior consent of the Bookrunners, such consent not to be unreasonably withheld or delayed, directly or indirectly, offer, sell, contract to sell, grant any option to purchase, make any short sale, or otherwise dispose of, or transfer, or announce any intention to do so, any Common Shares, whether now owned directly or indirectly, or under their control or direction, or with respect to which each has beneficial ownership, or enter into any transaction or arrangement that has the effect of transferring, in whole or in part, any of the economic consequences of ownership of Common Shares, whether such transaction is settled by the delivery of Common Shares, other securities, cash or otherwise (each, a "**Transfer**") other than (i) Transfers among a shareholders' affiliates for tax or other planning purposes; or (ii) Transfers pursuant to a take-over bid or any other similar transaction made generally to all of the shareholders of the Company subject to certain customary exceptions.

(4) The Company will have made or obtained, as applicable, using commercially reasonable efforts at or prior to the Closing Time, all consents, approvals, permits, authorizations or filings as may be required by the Company under Securities Laws necessary for the consummation of the transactions contemplated herein, other than customary post-closing filings required to be submitted within the applicable time frame pursuant to Securities Laws and the rules of the Stock Exchange.

Section 10 Representations and Warranties of the Underwriters

(1) Each Underwriter hereby severally, and not jointly, nor jointly and severally, represents and warrants to the Company, the following:

(a) the Underwriters are, and will remain so, until the completion of the Offering, appropriately registered under applicable Canadian Securities Laws or U.S. Securities Laws, as applicable, so as to permit it to lawfully fulfill its obligations hereunder;

(b) the Underwriters have good and sufficient right and authority to enter into this Agreement and complete the transactions contemplated under this Agreement on the terms and conditions set forth herein;

(c) other than the Marketing Document, the Underwriters have not provided any Marketing Materials to any potential investors in connection with the Offering as at the date hereof;

(d) during the period of distribution of the Offered Shares by or through the Underwriters, the Underwriters will offer and sell the Offered Shares to the public only in the Offering Jurisdictions where they may lawfully be offered for sale upon the terms and conditions set forth in the Prospectus and this Agreement, either directly or through its Selling Group. The Underwriters shall be entitled to assume that the Offered Shares are qualified for distribution in the Offering Jurisdictions;

(e) the Underwriters will comply with applicable Securities Laws in connection with the offer and sale and distribution of the Offered Shares. The Underwriters will offer the Offered Shares for sale by the Company in the United States directly or through one or more of their U.S. Affiliates pursuant to applicable exemptions from the registration requirements of U.S. Securities Act and applicable U.S. state securities laws, and in such other international Selling Jurisdictions on a private placement basis, in accordance with applicable Securities Laws in such other international Selling Jurisdictions. Any offer for sale or sale of the Offered Shares in the United States will be made solely pursuant to the U.S. Private Placement Memorandum and in accordance with Schedule "A" to this Agreement;

(f) the Underwriters will not, directly or indirectly, solicit offers to sell or sell the Offered Shares or deliver any Offering Document to purchasers so as to require registration of the Offered Shares or the filing of a prospectus or registration statement with respect to the Offered Shares under the Applicable Laws of any jurisdiction other than the Qualifying Jurisdictions;

(g) the Underwriters will not, in connection with the Offering, make any representation or warranty with respect to the Offered Shares or the Company's other securities or the Company other than as set forth in this Agreement or the Offering Documents; and

(h) the Underwriters will use its commercially reasonable best efforts to complete the distribution of the Offered Shares as promptly as possible after the Closing Time. The Underwriters will notify the Company when the Underwriters have ceased the distribution of the Offered Shares and, within 30 days after the Closing Date, will provide the Company, in writing, with a breakdown of the number of Offered Shares distributed (i) in each of the Qualifying Jurisdictions, and (ii) as applicable, in any other Selling Jurisdictions.

Section 11 Conditions of Closing

The Underwriters' obligation to purchase the Offered Shares pursuant to this Agreement (including the obligation to complete the purchase of the Initial Shares and the Over-Allotment Shares, as the case may be) shall be subject to the following conditions having been met at the Closing Time:

(1) the Underwriters receiving favourable legal opinions from Mintz LLP, counsel to the Company (who may rely, to the extent appropriate in the circumstances, on the opinions of local counsel acceptable to counsel to the Underwriters, acting reasonably, as to the qualification of the Offered Shares for sale to the public and as to other matters governed by the laws of jurisdictions in Canada other than the provinces in which they are qualified to practice and may rely, to the extent appropriate in the circumstances, as to matters of fact on certificates of officers, public and exchange officials or of the Company's Auditor or Transfer Agent of the Company), addressed to the Underwriters, substantially to the effect set forth below, subject to customary assumptions, qualifications and limitations:

(a) the Company is a company validly continued and existing under the BCBCA and has all requisite corporate power and capacity to carry on business, to own and lease properties and assets;

(b) the authorized and issued share capital of the Company;

(c) the Company has the requisite corporate power and authority to enter into this Agreement and to perform its obligations set out herein, and the Agreement has been duly executed and delivered by the Company and constitutes a legal, valid and binding obligation of the Company enforceable against the Company in accordance with its terms;

(d) the execution and delivery of this Agreement and the fulfilment of the terms of this Agreement by the Company and the issuance, sale and delivery of the Offered Shares, and the grant of the Over-Allotment Option, do not and will not result in a breach of or default under, and do not and will not create a state of facts which, after notice or lapse of time or both, will result in a breach of or default under, and do not and will not conflict with the notice of articles and articles of the Company, or any applicable Canadian Securities Laws;

(e) all necessary corporate action has been taken by the Company to authorize the execution of the Agreement and each of the Offering Documents, as applicable, and the filing thereof with the Securities Regulators in the Qualifying Jurisdictions, as applicable;

(f) the Initial Shares have been validly issued as fully paid and non-assessable Common Shares;

(g) the Over-Allotment Option has been duly and validly authorized and granted by the Company, and the Over-Allotment Shares been duly and validly, allotted and reserved for issuance by the Company and, upon the due exercise of the Over-Allotment Option, including receipt by the Company of payment in full therefor, the Over-Allotment Shares will be issued and outstanding as fully paid and non-assessable Common Shares;

(h) all necessary documents have been filed, all necessary proceedings have been taken and all necessary authorizations, approvals, permits, consents and orders have been obtained under Canadian Securities Laws to qualify the distribution to the public of the Offered Shares in the Offering Jurisdictions by or through persons who are duly registered under the applicable Canadian Securities Laws and who have complied with the relevant provisions of such applicable Canadian Securities Laws and to qualify the grant of the Over-Allotment Option;

(i) subject to the qualifications, limitations and assumptions set out therein, the statements set forth in the Prospectus under the captions "*Eligibility for Investment*" and "*Certain Canadian Federal Income Tax Considerations*", insofar as they purport to describe the provisions of the laws referred to therein, are fair summaries of the matters discussed therein;

(j) subject only to the standard listing conditions, the Initial Shares and the Over-Allotment Shares have been conditionally listed or approved for listing on the Stock Exchange;

(k) TSX Trust Company has been duly appointed as registrar and transfer agent of the Common Shares; and

(l) the attributes of the Initial Shares and the Over-Allotment Shares conform in all material respects with the description thereof contained in the Prospectus;

in form and substance acceptable to the Underwriters and their counsel, acting reasonably.

(2) the Underwriters receiving a favourable legal opinions in respect of each of the Material Subsidiaries (other than ABP Global Inc., ABP Diablillos Inc., for which certificates of incumbency are to be provided substantially certifying the matters listed in (a), (c) and (d) below) in form and substance satisfactory to the Underwriters and their counsel, acting reasonably, and addressed to the Underwriters, with respect to following:

(a) the incorporation and existence under the Applicable Law of their respective jurisdictions of incorporation;

(b) the requisite corporate capacity and power to own and lease their properties and assets and to conduct their business as currently being conducted;

(c) as to the authorized and issued share capital and to the ownership thereof; and

(d) as to each being current with all corporate filings required to be made under their respective jurisdictions of incorporation and all other jurisdictions in which they exist or carry on any material business, and have all necessary licences, leases, permits, authorizations and other approvals necessary to permit them to conduct their respective business as currently conducted;

(3) the Underwriters receiving a favourable legal opinion in form and substance satisfactory to the Underwriters and their counsel, acting reasonably, to be delivered to the Underwriters with respect to title of the Diablillos Project;

(4) if any of the Initial Shares or Over-Allotment Shares are offered or sold in the United States, the Underwriters shall have received at the Closing Time a customary and favourable legal opinion, dated the Closing Date, from Mintz, Levin, Cohn, Ferris, Glovsky and Popeo, P.C., counsel for the Company, addressed to the Underwriters and in form and substance reasonably satisfactory to the Underwriters, to the effect that no registration is required under the U.S. Securities Act in connection with the offer and sale of the Initial Shares and Over-Allotment Shares in the United States; provided, that such offer, resale and delivery of the Initial Shares and Over-Allotment Shares in the United States is made in compliance with this Agreement and the terms set out in Schedule "A" hereto and provided further that it being understood that no opinion is expressed as to any subsequent resale of any of the Initial Shares or Over-Allotment Shares and provided further that in rendering such opinions, such counsel may rely: (i) as to matters involving the application of laws other than the laws of the United States and jurisdictions in which they are admitted, to the extent such counsel deems proper and to the extent specified in such opinion, if at all, upon an opinion or opinions of other counsel familiar with the Applicable Laws; and (ii) as to matters of fact, to the extent such counsel deems proper, on (a) certificates or other written statements of officers of the Company and (b) the Underwriters' Certificate attached hereto as Appendix I to Schedule "A";

(5) the Underwriters having received certificates dated the Closing Date and signed by two senior officers of the Company as may be acceptable to the Underwriters, acting reasonably, in form and substance satisfactory to the Underwriters, acting reasonably, with respect to:

(a) the constating documents of the Company;

(b) the resolutions of the directors of the Company relevant to the Offering, the Offering Documents, the sale of the Offered Shares, the grant of the Over-Allotment Option and the authorization of this Agreement and the transactions contemplated herein and therein; and

(c) the incumbency and signatures of signing officers for the Company;

(6) the Underwriters receiving certificates of status and/or compliance, where issuable under Applicable Law, for the Company and the Material Subsidiaries, each dated within one Business Day prior to the Closing Date;

(7) the Underwriters receiving an auditor's "bring down" comfort letter dated the Closing Date from the Company's Auditor, in form and substance satisfactory to the Bookrunners, acting reasonably, on behalf of the Underwriters, bringing forward to a date not more than two Business Days prior to the Closing Date the information contained in the comfort letter referred to in Section 5(3) hereof;

(8) the Underwriters receiving a certificate dated the Closing Date and signed by the Chief Executive Officer and the Chief Financial Officer or such other senior officer(s) of the Company as may be

acceptable to the Bookrunner, on behalf of the Underwriters, certifying for and on behalf of the Company and without personal liability, after having made due enquiries, that:

(a) the representations and warranties of the Company contained in this Agreement, and in any certificates of the Company delivered pursuant to or in connection with this Agreement, are true and correct in all material respects as of the Closing Time as if such representations and warranties were made as at the Closing Time, after giving effect to the transactions contemplated hereby;

(b) the Company has complied in all material respects with all the covenants and satisfied in all material respects all the terms and conditions of this Agreement on its part to be complied with and satisfied at or prior to the Closing Time;

(c) no order, ruling or determination having the effect of suspending the sale or ceasing the trading or prohibiting the sale of the Offered Shares or any other securities of the Company has been issued by any regulatory authority and is continuing in effect and no proceedings for that purpose have been instituted or are pending or, to the knowledge of such officers, contemplated or threatened by any regulatory authority or the Stock Exchange; and

(d) the Prospectus is true and correct in all material respects and contains no misrepresentation, constitutes full, true and plain disclosure of all material facts relating to the Offered Shares and to the Company and its Subsidiaries considered as a whole and does not contain an untrue statement of a material fact or omit to state a material fact necessary to make the statements therein, in light of the circumstances in which they were made, not misleading;

(9) the Underwriters receiving a certificate from the Transfer Agent as to the number of Common Shares issued and outstanding as at the end of the Business Day on the date prior to the Closing Date;

(10) the Company having used commercially reasonable efforts to deliver to the Underwriters the executed lock-up agreements from the applicable persons pursuant to Section 9(3);

(11) the Company having delivered to the Underwriters evidence of the approval (or conditional approval) of the listing and posting for trading of the Initial Shares and Over-Allotment Shares on the Stock Exchange, subject only to satisfaction by the Company of standard listing conditions;

(12) the Company complying, in all material respects, with all of its covenants and obligations under this Agreement required to be satisfied at or prior to the Closing Time;

(13) the Underwriters not having exercised any rights of termination set forth herein; and

(14) the Underwriters having received such further certificates, opinions of counsel and other documentation from the Company contemplated herein, provided, however, that the Underwriters or their counsel shall request any such certificate or document within a reasonable period prior to the Closing Time that is sufficient for the Company to obtain and deliver such certificate, opinion or document.

Section 12 Closing

(1) The Offering will be completed electronically at the Closing Time.

(2) At the Closing Time, subject to the terms and conditions contained in this Agreement, the Company shall deliver to the Underwriters the Initial Shares in electronic form, unless otherwise directed by the Bookrunner, on behalf of the Underwriters, against payment to the Company by the Underwriters of the aggregate Offering Price for the Initial Shares by wire transfer, net of the Commission and expenses of the Underwriters payable by the Company as set out in this Agreement.

(3) The Company shall cause the Transfer Agent to issue electronically and register through the non-certificated inventory process, the Initial Shares against payment therefor in the manner as set forth above, such electronic issuance being registered in the name of CDS (or in such other name as the Underwriters, may direct).

Section 13 Closing of the Over-Allotment Option

(1) The Over-Allotment Option may be exercised in whole or in part at any time, and from time to time, on or prior to the 30th day following the Closing Date. The Bookrunners shall provide written notice to the Company of its election to exercise the Over-Allotment Option, which notice will set forth: (i) the aggregate number of Over-Allotment Shares to be purchased; and (ii) the Option Closing Date, provided that such Option Closing Date shall not be less than two Business Days and no more than seven Business Days following the date of such notice, and in any event not later than the 30th day following the Closing Date.

(2) The purchase and sale of the Over-Allotment Shares, if required, shall be completed at such time and place as the Bookrunners and the Company may agree, and in accordance with Section 13(1) above.

(3) At the closing of the Over-Allotment Option, subject to the terms and conditions contained in this Agreement, the Company shall deliver to the Underwriters the Over-Allotment Shares, in electronic or certificated form, registered as directed by the Underwriters, against payment to the Company by the Underwriters of the aggregate Offering Price for the Over-Allotment Shares being issued and sold by wire transfer, net of the Commission and any expenses of the Underwriters payable by the Company as set out in this Agreement.

(4) The applicable terms, conditions and provisions of this Agreement (including the provisions of Section 11 relating to closing deliveries and Section 15 relating to fees and expenses) shall apply *mutatis mutandis* to the issuance of any Over-Allotment Shares pursuant to any exercise of the Over-Allotment Option.

(5) In the event that the Company shall subdivide, consolidate, reclassify or otherwise change its Common Shares during the period in which the Over-Allotment Option is exercisable, appropriate adjustments will be made to the Offering Price and to the number of Over-Allotment Shares issuable on exercise thereof such that the Underwriters are entitled to arrange for the sale of the same number and type of securities that the Underwriters would have otherwise arranged for had they exercised such Over-Allotment Option immediately prior to such subdivision, consolidation, reclassification or change.

Section 14 Indemnification and Contribution

(1) The Company agrees to indemnify and hold harmless the Underwriters, each of their subsidiaries and each of their respective directors, officers, employees, partners, and agents (collectively, the "**Indemnified Parties**" and individually, an "**Indemnified Party**"), from and against any and all

losses (other than loss of profits), expenses, claims, actions, damages and liabilities, whether joint or solidary, including the aggregate amount paid in reasonable settlement of any actions, suits, proceedings, investigations or claims and the reasonable fees and expenses of their counsel that may be incurred in advising with respect to and/or defending any action, suit, proceeding, investigation or claim that may be made or threatened against any Indemnified Party or in enforcing this indemnity (collectively, the "**Claims**") to which any Indemnified Party may become subject or otherwise involved in any capacity insofar as the Claims relate to, are caused by, result from, arise out of or are based upon, directly or indirectly, the Underwriters' proper performance of the Underwriters' services pursuant to this Agreement. The Company also agrees that no Indemnified Party shall have any liability (whether direct or indirect, in contract or tort or otherwise) to the Company or any person asserting claims on behalf of or in right of the Company for or in connection with the provision of services under this Agreement except to the extent any losses, expenses, claims, actions, damages or liabilities incurred by the Company, as the case may be, have resulted from the gross negligence, or willful misconduct of such Indemnified Party, a breach of the terms of this Agreement by such Indemnified Party or a breach of any applicable Securities Laws by such Indemnified Party. No party shall effect any settlement of any Claim or make any admission of liability without the prior written consent of the other parties, such consent to be properly considered and not to be unreasonably withheld or delayed.

(2) Promptly after receiving notice of an action, suit, proceeding or claim against the Underwriters or any other Indemnified Party or receipt of notice of the commencement of any investigation involving the Underwriters or any other Indemnified Party which is based, directly or indirectly, upon or involves any matter in respect of which indemnification may be sought from the Company, the Underwriters or any such other Indemnified Party will notify the Company in writing of the particulars thereof, provided that the omission to so notify the Company shall not relieve the Company of any liability which the Company may have to Underwriters or any other Indemnified Party unless and only to the extent that any such delay in or failure to give notice as herein required prejudices the defence of such action, suit, proceeding, claim or investigation or results in any material increase in the liability which the Company has under this indemnity.

(3) The indemnity provided under this Section 14 shall not apply to the extent that such losses, expenses, claims, actions, damages or liabilities to which the Indemnified Party may be subject were caused by the fraud, gross negligence or willful misconduct of the Indemnified Party or a breach of the terms of this Agreement by such Indemnified Party or a breach of any applicable securities laws by such Indemnified Party. An Indemnified Party may retain counsel to separately represent it in the defence of a Claim, which shall be at the Company's expense if: (i) the Company does not promptly assume the defence of the Claim; (ii) the Company agrees to separate representation; or (iii) the Indemnified Party is advised by counsel that there is an actual or potential conflict in the Company's and the Indemnified Party's respective interests or additional defences are available to the Indemnified Party, which makes representation by the same counsel inappropriate. The Company also agrees to reimburse the Underwriters for the time spent by their personnel in connection with any Claim at their normal *per diem* rates.

(4) If for any reason the foregoing indemnity is unavailable (other than in accordance with the terms hereof) to any Indemnified Party or insufficient to hold any Indemnified Party harmless, the Company shall contribute to the amount paid or payable by the Indemnified Party as a result of such Claim in such proportion as is appropriate to reflect not only the relative benefits received the Company and the Indemnified Party, but also the relative fault of the Company and the Indemnified Party as well as any relevant equitable considerations; provided that the Company shall in any event be liable to pay or contribute to the amount paid or payable by the Indemnified Party under the

Claim any amounts in excess of the aggregate amount of the fees actually received by the Indemnified Party under this Agreement.

(5) In no event shall the Company be responsible for the fees of more than one firm of attorneys representing all Indemnified Parties, in connection with the foregoing in any particular jurisdiction.

(6) The obligations of the Company under this Section 14 are in addition to any liabilities, which the Company may otherwise have to the Underwriters or any other Indemnified Party.

Section 15 Fees and Expenses

(1) At the Closing Time, in consideration of the services to be rendered by the Underwriters in connection with the Offering, the Company shall pay to the Underwriters a cash fee equal to 5.5% of the aggregate gross proceeds received at such Closing Time from the sale of the Initial Shares or Over-Allotment Shares, as applicable. No Commission will be payable to the Underwriters in connection with the Concurrent Private Placement.

(2) Whether or not the Offering is completed, the Company will pay all of the expenses of the Offering and all of the reasonable and documented costs and expenses (the "**Underwriters' Expenses**") incurred by the Underwriters in connection with the Offering including the fees and disbursements of Underwriters' counsel (up to the maximum set out in the Engagement Letter); reasonable fees and disbursements of other applicable experts and advisors; reasonable expenses related to roadshows and marketing activities; filing fees; stock exchange fees; reasonable out-of-pocket expenses of the Underwriters (including, but not limited to, their travel expenses in connection with due diligence and marketing activities) and taxes on all of the foregoing. The Underwriters' Expenses and applicable taxes thereon will be paid by the Company even if the transactions contemplated by this Agreement are not completed or this Agreement is terminated, unless failure of acceptance, or completion or termination is the result of a breach of this Agreement by the Underwriters. The Underwriters' Expenses and the Commission shall be payable as directed by NBF at Closing.

Section 16 All Terms to be Conditions

The Company agrees that the conditions contained in this Agreement will be complied with insofar as the same relate to acts to be performed or caused to be performed by the Company and each of the Company and the Underwriters will use its respective commercially reasonable efforts to cause all such conditions to be complied with. It is understood that the Underwriters may waive, in whole or in part, or extend the time for compliance with, any of such terms and conditions without prejudice to the rights of the Underwriters in respect of any such terms and conditions or any other or subsequent breach or non-compliance, provided that to be binding on the Underwriters any such waiver or extension must be in writing.

Section 17 Termination by Underwriters in Certain Events

(1) Each Underwriter shall also be entitled, without liability, to terminate its obligation to purchase the Offered Shares by written notice to that effect given to the Company at or prior to the Closing Time if:

(a) any inquiry, action, suit, investigation or other proceeding is instituted or announced or any order is made by any federal, provincial, state or other governmental authority, commission, board, bureau, agency or instrumentality (including, without limitation, the Stock Exchange or any securities regulatory authority) in relation to the Company or any

of its subsidiaries, or there is any change in law or regulation, or the interpretation or administration thereof, which, in any such cases, in the opinion of any of the Underwriters, acting reasonably, operates to materially impact, prevent or restrict the distribution or trading of the Common Shares;

(b) there should develop, occur or come into effect or existence any event, action, state, condition or major financial occurrence of national or international consequence or any outbreak or escalation of national or international hostilities or any crisis or calamity or plague of national or international consequence, or any governmental action, law, regulation, inquiry or other similar occurrence which, in the opinion of any of the Underwriters, acting reasonably, seriously adversely affects, or involves, or could reasonably be expected to seriously adversely affect or involve the financial markets in Canada or the United States or the business, operations or affairs of the Company and its Subsidiaries taken as a whole;

(c) there shall occur, be discovered by the Underwriters or announced by the Company, any material change or a change in any material fact in the business affairs, financial condition, assets, liabilities (contingent or otherwise), results of operations of the Company and its related entities (taken as a whole), or there shall exist or be discovered any material fact which is, or may be, untrue, false or misleading in a material respect or result in a misrepresentation (other than a change or fact related solely to the Underwriters), which, in the opinion of any of the Underwriters, acting reasonably, has or could be reasonably expected to have a significant adverse effect on the market price or value of the Common Shares; and/or

(d) the Company is in breach of any material term, condition or covenant of this Agreement or any representation or warranty given by the Company herein or therein is or becomes false in any material respect, and such breach is incapable of being cured prior to the Closing Date or, in the event of exercise of the Over-Allotment Option, the Option Closing Date.

(2) If this Agreement is terminated by any of the Underwriters pursuant to Section 17(1), there shall be no further liability on the part of such Underwriter or of the Company to such Underwriter, except in respect of any liability which may have arisen or may thereafter arise under Section 14 and Section 15.

(3) The right of the Underwriters or any of them to terminate their respective obligations under this Agreement is in addition to such other remedies as they may have in respect of any default, act or failure to act of the Company in respect of any of the matters contemplated by this Agreement. A notice of termination given by one Underwriter under this Section 17 shall not be binding upon the other Underwriters.

(4) Notwithstanding the foregoing and for the avoidance of doubt, this Agreement may be terminated at any time at or prior to the Closing Time upon the mutual written agreement of the Company and the Underwriters if the parties hereto decide not to proceed with the Offering.

Section 18 Obligations of the Underwriters to be Several

(1) Subject to the terms and conditions hereof, the obligation of the Underwriters to purchase the Offered Shares shall be several, and not joint, nor joint and several, and shall be as to the following percentages of the Offered Shares to be purchased by the Underwriters:

National Bank Financial Inc.[(1)]	27.0%
Beacon Securities Limited[(1)]	26.5%
Raymond James Ltd. [(1)]	26.5%
Scotia Capital Inc.	10.0%
TD Securities Inc.	10.0%
Total	**100%**

(1) Co-Bookrunner.

(2) If an Underwriter (a "**Refusing Underwriter**") shall not complete the purchase of the Offered Shares which such Underwriter has agreed to purchase hereunder (the "**Default Securities**") for any reason whatsoever at the Closing Time, and (i) if the number of Default Securities does not exceed 10% of the number of Offered Shares to be purchased hereunder on such date, the other non-Refusing Underwriters (the "**Continuing Underwriters**") shall be obligated, each severally, and not jointly, nor jointly and severally, to purchase the Offered Shares which the Refusing Underwriter fails to purchase, in the proportions that their respective underwriting obligations hereunder bear to the underwriting obligation of all Continuing Underwriters; or (ii) if the number of Default Securities exceeds 10% of the number of Offered Shares to be purchased on such date, the Continuing Underwriters shall have the right, at their option, but not be obligated to, to purchase all but not less than all of the Offered Shares which would otherwise have been purchased by the Refusing Underwriter on a pro rata basis according to the number of Offered Shares to have been acquired by the Continuing Underwriters hereunder or on such other basis as the Continuing Underwriters may agree. If the Continuing Underwriters do not elect to purchase the balance of the Offered Shares pursuant this Section 18, then the Company shall have the right to either (i) proceed with the sale of the Offered Shares (less the Default Securities) to the Continuing Underwriters; or (ii) terminate its obligations hereunder without liability except pursuant to the provisions of Section 14 and Section 15 in respect of the Continuing Underwriters.

(3) No action taken pursuant to Section 18(2) shall relieve any Refusing Underwriter from liability in respect of its default to the Company or to any Continuing Underwriter.

(4) Nothing in this Section 18 or Section 17 shall oblige the Company to sell to any or all of the Underwriters less than all of aggregate amount of the Offered Shares.

Section 19 Notices

(1) Any notice or other communication required or permitted to be given hereunder shall be in writing and shall be delivered,

(a) in the case of the Company, to:

AbraSilver Resource Corp.
220 Bay Street, Suite 550
Toronto, Ontario M5J 2W4

Attention: John Miniotis, President and Chief Executive Officer
Email: [*Redacted – Email Address*]

with a copy of any such notice to:

Mintz LLP
200 Bay Street, South Tower

Suite 2800
Toronto, Ontario M5J 2J3

Attention: Eric Foster and Matthew Imrie
Email: [*Redacted – Email Addresses*]

(b) in the case of the Underwriters, to:

National Bank Financial Inc.
130 King Street West, Suite 800
Toronto, Ontario M5X 1J9

Attention: Greg Doyle, Managing Director
Email: [*Redacted – Email Address*]

and

Beacon Securities Limited
66 Wellington Street West, Suite 4050
Toronto, Ontario M5K 1H1

Attention: Scott Robertson, Managing Director
Email: [*Redacted – Email Address*]

and

Raymond James Ltd.
Scotia Plaza, 40 King Street West, Suite 5300
Toronto, Ontario M5H 3Y2

Attention: John Willett, Managing Director
Email: [*Redacted – Email Address*]

with a copy of any such notice to:

Cassels Brock & Blackwell LLP
Suite 3200, Bay Adelaide Centre – North Tower
40 Temperence Street
Toronto, ON M5H 0B4

Attention: Chad Accursi
Email: [*Redacted – Email Address*]

(2) The Company and the Underwriters may change their respective addresses for notices by notice given in the manner aforesaid. Any such notice or other communication shall be in writing, and unless delivered personally to the addressee or to a responsible officer of the addressee, as applicable, shall be given by electronic copy and shall be deemed to have been given when: (i) in the case of a notice delivered personally to a responsible officer of the addressee, when so delivered; and (ii) in the case of a notice delivered or given by telecopy on the first Business Day following the day on which it is sent.

Section 20 Miscellaneous

(1) Except with respect to Section 14, Section 17 and Section 18, all transactions and notices on behalf of the Underwriters hereunder or contemplated hereby may be carried out or given on behalf of the Underwriters by the Bookrunners and the Underwriters shall in good faith discuss with each other the nature of any such transactions and notices prior to giving effect thereto or the delivery thereof, as the case may be.

(2) This Agreement shall enure to the benefit of, and shall be binding upon, the Underwriters and the Company and their respective successors and legal representatives.

(3) This Agreement shall be governed by and interpreted in accordance with the laws of the Province of Ontario and the federal laws of Canada applicable therein.

(4) Time shall be of the essence hereof and, following any waiver or indulgence by any party, time shall again be of the essence hereof.

(5) The words, "hereunder", "hereof" and similar phrases mean and refer to the Agreement formed as a result of the acceptance by the Company of this offer by the Underwriters to purchase the Offered Shares.

(6) All representations, warranties, covenants and agreements of the Company and/or the Underwriters herein contained or contained in documents submitted pursuant to this Agreement and in connection with the transaction of purchase and sale herein contemplated shall survive for a period ending on the date that is three years following the Closing Date. Notwithstanding the preceding sentence, Section 14 shall survive the purchase and sale of the Offered Shares and the termination of this Agreement and shall continue in full force and effect for the benefit of the Underwriters or the Company, as the case may be, regardless of any subsequent disposition of the Offered Shares or any investigation by or on behalf of the Underwriters with respect thereto without limitation other than any limitation requirements of Applicable Law. The Underwriters and the Company shall be entitled to rely on the representations and warranties of the Company or the Underwriters, as the case may be, contained herein or delivered pursuant hereto notwithstanding any investigation which the Underwriters or the Company may undertake or which may be undertaken on their behalf.

(7) Each of the parties hereto shall be entitled to rely on delivery of a facsimile or PDF copy of this Agreement and acceptance by each such party of any such facsimile or PDF copy shall be legally effective to create a valid and binding agreement between the parties hereto in accordance with the terms hereof.

(8) If one or more of the provisions contained herein shall, for any reason, be held to be invalid, illegal or unenforceable in any respect, such invalidity, illegality or unenforceability shall not affect any other provision of this Agreement, but this Agreement shall be construed as if such invalid, illegal or unenforceable provision or provisions had never been contained herein.

(9) This Agreement may be executed in any number of counterparts, each of which when so executed shall be deemed to be an original and all of which when taken together shall constitute one and the same agreement.

(10) In performing their respective obligations under this Agreement, the Underwriters shall be acting severally and not jointly and severally. Nothing in this Agreement is intended to create any relationship in the nature of a partnership, or joint venture between the Underwriters.

(11) In connection with the distribution of the Offered Shares, the Underwriters (or any of them) may effect transactions which stabilize or maintain the market price of the Common Shares at levels other than those which might otherwise prevail in the open market, but in each case as permitted by Canadian Securities Laws. Such stabilizing transactions, if any, may be discontinued by the Underwriters at any time.

(12) The Company hereby acknowledges that the Underwriters are acting solely as underwriters in connection with the purchase and sale of the Company's securities contemplated hereby. The Company further acknowledges that the Underwriters are acting pursuant to a contractual relationship created solely by this Agreement entered into on an arm's length basis, and in no event do the parties intend that the Underwriters will act or be responsible as a fiduciary to the Company, its management, shareholders or creditors or any other person in connection with any activity that the Underwriters may undertake or have undertaken in furtherance of such purchase and sale of the Company's securities, either before or after the date hereof. The Underwriters hereby expressly disclaim any fiduciary or similar obligations to the Company, in connection with the transactions contemplated by this Agreement, and the Company hereby confirms its understanding and agreement to that effect. The Company and the Underwriters agree that they are each responsible for making their own independent judgments with respect to any such transactions and that any opinions or views expressed by the Underwriters to the Company regarding such transactions, including, but not limited to, any opinions or views with respect to the price or market for the Company's securities, do not constitute advice or recommendations to the Company. The Company and the Underwriters agree that the Underwriters are acting as principals and not as an agents or fiduciaries of the Company and no Underwriter has assumed, and no Underwriter will assume, any advisory responsibility in favour of the Company with respect to the transactions contemplated hereby or the process leading thereto (irrespective of whether the Underwriters have advised or are currently advising the Company on other matters). The Company hereby waives and releases, to the fullest extent permitted by law, any claims that the Company may have against the Underwriters with respect to any breach or alleged breach of any fiduciary, advisory or similar duty to the Company in connection with the transactions contemplated by this Agreement and the Offering.

(13) The Company acknowledges that the Underwriters may be engaged in securities trading and brokerage activities, and providing investment banking, investment management, financial and financial advisory services. In the ordinary course of their trading, brokerage, investment and asset management and financial activities, the Underwriters and their affiliates may hold long or short positions, and may trade or otherwise effect or recommend transactions, for their own account or the accounts of their customers, in debt or equity securities or loans of the Company or any other company that may be involved in any transaction with the Company. Each Underwriter and its affiliates may also provide a broad range of normal course financial products and services to its customers (including, but not limited to banking, credit derivative, hedging and foreign exchange products and services), including companies that may be involved in any transaction with the Company.

(14) This Agreement constitutes the only agreement between the parties with respect to the subject matter hereof and shall supersede any and all prior negotiations and understandings in respect of the Offering, including the Engagement Letter (other than as otherwise noted herein with respect to the Underwriters' expenses). This Agreement may be amended or modified in any respect by written instrument only.

(15) Each of the parties hereto shall do or cause to be done all such acts and things and shall execute or cause to be executed all such documents, agreements and other instruments as may reasonably be necessary or desirable for the purpose of carrying out the provisions and intent of this Agreement.

If this Agreement accurately reflects the terms of the transactions which we are to enter into and are agreed to by you, please communicate your acceptance by executing the enclosed copies of this Agreement where indicated and returning them to us.

Yours very truly,

NATIONAL BANK FINANCIAL INC.

By: *(signed) "Greg Doyle"*
Greg Doyle
Managing Director, Global Mining & Metals
Investment Banking

BEACON SECURITIES LIMITED

By: *(signed) "Scott Robertson"*
Scott Robertson
Managing Director, Investment Banking

RAYMOND JAMES LTD.

By: *(signed) "John Willett"*
John Willett
Managing Director, Investment Banking

SCOTIA CAPITAL INC.

By: *(signed) "Brendan Spinks"*
Brendan Spinks
Managing Director, Global Metals & Mining
Investment Banking

TD SECURITIES INC.

By: *(signed) "Edward J. McGurk"*
Edward J. McGurk
Managing Director, Mining Investment Banking

The foregoing is hereby accepted and agreed to by the undersigned as of the date first written above.

ABRASILVER RESOURCE CORP.

By: *(signed) "John Miniotis"*
John Miniotis
President and Chief Executive Officer

SCHEDULE "A"

COMPLIANCE WITH UNITED STATES SECURITIES LAWS

1. Capitalized terms used in this Schedule "A" and not defined in this Schedule "A" shall have the meanings given in the Underwriting Agreement to which this Schedule "A" is annexed and the following terms shall have the meanings indicated:

"**Directed Selling Efforts**" means "directed selling efforts" as that term is defined in Rule 902(c) of Regulation S. Without limiting the foregoing, but for greater clarity in this Schedule "A", it means, subject to the exclusions from the definition of directed selling efforts contained in Regulation S, any activity undertaken for the purpose of, or that could reasonably be expected to have the effect of, conditioning the market in the United States for any of the Offered Shares and shall include, without limitation, the placement of any advertisement in a publication with a general circulation in the United States that refers to the offering of any of such Offered Shares;

"**Foreign Issuer**" means a "**foreign issuer**" as that term is defined in Rule 902(e) of Regulation S. Without limiting the foregoing, but for greater clarity in this Schedule "A", it means any issuer that is (a) the government of any country, or of any political subdivision of a country, other than the United States, or (b) a corporation or other organization incorporated or organized under the laws of any country other than the United States, except an issuer meeting the following conditions as of the last Business Day of its most recently completed second fiscal quarter: (1) more than 50 percent of the outstanding voting securities of such issuer are directly or indirectly owned of record by residents of the United States, and (2) any of the following: (i) the majority of the executive officers or directors are United States citizens or residents, (ii) more than 50 percent of the assets of the issuer are located in the United States, or (iii) the business of the issuer is administered principally in the United States;

"**General Solicitation**" and "**General Advertising**" means "general solicitation" and "general advertising", respectively, as used in Rule 502(c) of Regulation D, including, without limitation, advertisements, articles, notices or other communication published on the Internet or in any newspaper, magazine or similar media or broadcast over television, radio or on the Internet, or any seminar or meeting whose attendees had been invited by general solicitation or general advertising;

"**Offshore Transaction**" means "offshore transaction" as defined in Rule 902(h) of Regulation S;

"**Qualified Institutional Buyer**" means a "qualified institutional buyer" as defined in Rule 144A of the U.S. Securities Act;

"**Substantial U.S. Market Interest**" means "substantial U.S. market interest" as that term is defined in Rule 902(j) of Regulation S; and

"**U.S. Purchaser**" means any purchaser of the Offered Shares that is, or is acting for the account or benefit of, a person in the United States, or any person offered the Offered Shares in the United States.

2. The Company represents, warrants and covenants to the Underwriters and U.S. Affiliates that, as of the date of this Agreement and as at the Closing Time and any closing time for the Over-Allotment Option:

(a) the Company is, and at Closing will be, a Foreign Issuer, and there is no Substantial U.S. Market Interest with respect to the Offered Shares;

(b) none of the Company, its affiliates (as defined in Rule 405 under the U.S. Securities Act) or any person acting on any of their behalf (except for the Underwriters, their respective U.S. Affiliates and any person acting on any of their behalf, as to whom no representation, warranty or covenant is made) (i) has engaged or will engage in any Directed Selling Efforts, (ii) has taken or will take any action in violation of Regulation M under the U.S. Exchange Act, (iii) has taken or will take any action that would cause the exemption afforded by Rule 144A of the U.S. Securities Act to be unavailable for offers and sales of Offered Shares in the United States in accordance with this Schedule "A", or the exclusion from registration afforded by Rule 903 of Regulation S to be unavailable for offers and sales of the Offered Shares in Offshore Transactions in accordance with the Underwriting Agreement, or (iv) has engaged in or will engage in any form of General Solicitation or General Advertising or in any manner involving a public offering within the meaning of Section 4(a)(2) of the U.S. Securities Act with respect to offers or sales of the Offered Shares in the United States;

(c) the Company has not, within the period beginning 30 calendar days prior to the commencement of the Offering, offered or sold any securities, and will not, during the Offering and within the period ending 30 calendar days following the closing of the Offering, offer or sell any securities in a manner that would be integrated with the offer and sale of the Offered Shares and would cause the exemption from registration pursuant to Rule 144A of the U.S. Securities Act and similar exemptions under applicable securities laws of any state of the United States or the exclusion from registration set forth in Rule 903 of Regulation S, to become unavailable with respect to the offer and sale of the Offered Shares;

(d) except with respect to offers to Qualified Institutional Buyers pursuant to Rule 144A of the U.S. Securities Act and similar exemptions under applicable securities laws of any state of the United States, in each case in accordance with this Schedule "A" and pursuant to the terms of this Agreement, none of the Company, any of its affiliates, or any person acting on any of their behalf has made or will make (A) any offer to sell, or any solicitation of an offer to buy, any Offered Shares in the United States, or (B) any sale of the Offered Shares unless, at the time the buy order was or will have been originated, the purchaser is (i) outside the United States, or (ii) the Company, its affiliates an any person acting on any of their behalf reasonably believe that the purchaser is outside the United States;

(e) the Company is not, and after giving effect to the offer and sale of the Offered Shares and the application of the proceeds as described in the Prospectus, will not be, an "investment company" within the meaning of the United States Investment Company Act of 1940, as amended, registered or required to be registered under such Act;

(f) upon receipt of a written request from a purchaser that is in the United States, the Company shall make a determination if the Company is a "passive foreign investment company" (a "**PFIC**") within the meaning of section 1297(a) of the United States Internal Revenue Code of 1986, as amended (the "**Code**"), during any calendar year following the purchase of Offered Shares by such purchaser, and if the Company determines that it is a PFIC during such year, the Company will provide to such purchaser, upon written request, all information that would be required to permit a United States shareholder to make an election to treat the Company as a "qualified electing fund" for the purposes of the Code;

(g) at the Closing Time and any closing time for the Over-Allotment Option, the Company is not aware of any person that has been or will be paid (directly or indirectly) remuneration for solicitation of purchasers in connection with the sale of any Offered Shares; and

(h) the Company will, within the prescribed time periods, prepare and file any forms or notices required under the U.S. Securities Act or any state securities laws in connection with the sale of the Offered Shares; and

(i) neither the Company nor any predecessor of the Company has had the registration of a class of securities under the U.S. Exchange Act revoked by the SEC pursuant to Section 12(j) of the U.S. Exchange Act and any rules or regulations promulgated thereunder.

3. Each of the Underwriters, severally and not jointly, represents and warrants to the Company that, as of the date of this Agreement, the Closing Time and any closing time of the Over-Allotment Option:

(a) it acknowledges that the Offered Shares have not been and will not be registered under the U.S. Securities Act or applicable U.S. state securities laws and may not be offered or sold in the United States, except pursuant to transactions exempt from or not subject to the registration requirements of the U.S. Securities Act and applicable U.S. state securities laws. Accordingly, it has offered and sold, and will offer and sell, the Offered Shares forming part of its allotment only (a) in an Offshore Transaction in accordance with Rule 903 of Regulation S or (b) as provided in paragraphs 3(b) through 3(l) below. None of it, its U.S. Affiliate or any person acting on any of their behalf, has made or will make (except as permitted in paragraphs 3(b) through 3(l) below): (i) any offer to sell or any solicitation of an offer to buy, any Offered Shares in the United States; or (ii) any sale of Offered Shares to any purchaser unless, at the time the buy order was or will have been originated, the purchaser was outside the United States, or it, its U.S. Affiliate or any person acting on any of their behalf reasonably believed that such purchaser was outside the United States. None of it, its U.S. Affiliate, or any person acting on any of their behalf has engaged or will engaged in any Directed Selling Efforts;

(b) it has not entered and will not enter into any contractual arrangement with respect to the offer and sale of the Offered Shares, except with its U.S. Affiliate, a Selling Firm or with the prior written consent of the Company. It shall require its U.S. Affiliate and each Selling Firm appointed by it to agree, for the benefit of the Company, to be bound by and to comply with, and shall use its commercially reasonable efforts to ensure that its U.S. Affiliate and each Selling Firm appointed by it complies with, the provisions of this Schedule "A" as if such provisions applied to such U.S. Affiliate or Selling Firm;

(c) all offers and sales of Offered Shares in the United States by the Underwriters have been and shall be made directly or through the Underwriter's U.S. Affiliate, as applicable, in compliance with all applicable U.S. federal and state broker-dealer requirements. Such Underwriter or U.S. Affiliate, as applicable, is and will be, on the date of each offer or sale of Offered Shares in the United States, duly registered as a broker-dealer pursuant to Section 15(b) of the U.S. Exchange Act and under the laws of each state where such offers and sales are made (unless exempted from such state's registration requirements) and a member in good standing with the Financial Industry Regulatory Authority, Inc;

(d) it, and, if applicable, its U.S. Affiliate have not solicited and will not solicit, either directly or through a person acting on its or their behalf, offers for, and have not offered to sell and

will not offer to sell, Offered Shares in the United States by any form of General Solicitation or General Advertising;

(e) immediately prior to soliciting any offerees of Offered Shares in the United States, the Underwriter, its U.S. Affiliate and any person acting on its or their behalf had reasonable grounds to believe and did believe that each offeree solicited by it was a Qualified Institutional Buyer and at the time of completion of each sale of Offered Shares in the United States, the Underwriter, its U.S. Affiliate, and any person acting on its or their behalf will have reasonable grounds to believe and will believe, that each purchaser thereof is a Qualified Institutional Buyer;

(f) each offeree of Offered Shares solicited by it that is in the United States shall be provided with a copy of the U.S. Private Placement Memorandum and each purchaser of Offered Shares from it that is in the United States shall be provided, prior to the time of its purchase of any Offered Shares, with a copy of the U.S. Private Placement Memorandum and no other written material will be used in connection with the offer and sale of the Offered Shares in the United States;

(g) at least one Business Day prior to the Closing Time or any closing time for the Over-Allotment Option, the Company and its transfer agent will be provided with a list of all purchasers of the Offered Shares in the United States solicited by it;

(h) prior to any sale of Offered Shares to a U.S. Purchaser, it shall cause each such U.S. Purchaser to execute and deliver the Qualified Institutional Buyer Letter in the form attached as Exhibit I to the U.S. Private Placement Memorandum;

(i) at the Closing Time and any closing time of the Over-Allotment Option, the Underwriter, together with its U.S. Affiliate, if applicable, selling (or arranging for the Company to sell) Offered Shares in the United States, will provide a certificate, substantially in the form of Appendix I to this Schedule relating to the manner of the offer and sale of the Offered Shares in the United States or will be deemed to have represented and warranted that none of it, its affiliates or any person acting on its or their behalf has offered or sold Offered Shares in the United States;

(j) neither it, nor any of its affiliates or any person acting on any of their behalf has taken or will take any action that would constitute a violation of Regulation M under the U.S. Exchange Act in connection with the offer and sale of the Offered Shares;

(k) none of it, its affiliates or any person acting on any of their behalf has engaged or will engage in any action that would cause the exemption from the registration requirements of the U.S. Securities Act provided by: (A) Rule 144A of the U.S. Securities Act, to be unavailable for offers and sales of the Offered Shares in the United States, or (B) the exclusion from the registration requirements of the U.S. Securities Act provided by Rule 903 of Regulation S to be unavailable for offers and sales of the Offered Shares outside the United States in Offshore Transactions; and

(l) it will inform, and will cause its U.S. Affiliate to inform, all purchasers of the Offered Shares in the United States, by delivery of the U.S. Private Placement Memorandum, that the Offered Shares have not been and will not be registered under the U.S. Securities Act and are "restricted securities" as defined in Rule 144(a)(3) under the U.S. Securities Act and are being offered and sold to them without registration under the U.S. Securities Act

in reliance on the exemption from the registration requirements of the U.S. Securities Act provided by Rule 144A of the U.S. Securities Act.

APPENDIX I TO SCHEDULE "A"

UNDERWRITERS' CERTIFICATE

In connection with the private placement in the United States of Offered Shares of AbraSilver Resource Corp. (the "**Company**") pursuant to the underwriting agreement dated July 24, 2026, between the Company and the Underwriters named in the underwriting agreement (the "**Underwriting Agreement**"), each of the undersigned does hereby certify as follows:

(a) the U.S. Affiliate is a duly registered broker or dealer with the United States Securities and Exchange Commission, and is a member of, and in good standing with, the Financial Industry Regulatory Authority, Inc. on the date of this certificate and on the date of each offer and resale of Offered Shares made by it, and all offers and sales of the Offered Shares in the United States have been effected by the U.S. Affiliate in accordance with all applicable U.S. broker-dealer requirements;

(b) each offeree and purchaser of Offered Shares solicited by us that is in the United States was, prior to the sale of Offered Shares to such purchaser, provided with a copy of the U.S. Private Placement Memorandum, and we have not used any written material other than the U.S. Private Placement Memorandum in connection with the offer and sale of the Offered Shares in the United States;

(c) immediately prior to our transmitting the U.S. Private Placement Memorandum to offerees of Offered Shares in the United States we had reasonable grounds to believe, and did believe, that each offeree was a Qualified Institutional Buyer, and on the date of this certificate we continue to believe that each purchaser of the Offered Shares purchasing from us is a Qualified Institutional Buyer

(d) no form of General Solicitation or General Advertising was used by us in connection with the offer or sale of the Offered Shares in the United States;

(e) in connection with each sale of Offered Shares in the United States, we caused each such U.S. Purchaser to execute and deliver a Qualified Institutional Buyer Letter in the form of Exhibit I attached to the U.S. Private Placement Memorandum;

(f) no Directed Selling Efforts were engaged in by us with respect to the offer or sale of the Offered Shares by us;

(g) neither we nor any of our affiliates have taken or will take any action which would constitute a violation of Regulation M under the U.S. Exchange Act in connection with the offer or sale of the Offered Shares; and

(h) the offering of the Offered Shares in the United States has been conducted by us in accordance with the Underwriting Agreement, including Schedule "A" to the Underwriting Agreement.

Unless otherwise defined, terms used in this certificate have the meanings given to them in the Underwriting Agreement, including Schedule "A" thereto.

Capitalized terms used in this certificate and not defined in this certificate have the meanings ascribed thereto in the Underwriting Agreement (including the Schedule "A" to the Underwriting Agreement).

DATED the _____day of _____, 2026.

[UNDERWRITER]

By: _____
Name:
Title:

[U.S. AFFILIATE]

By: _____
Name:
Title:

SCHEDULE "B"

SUBSIDIARIES

Name	Jurisdiction of Incorporation	Authorized Share Capital	Issued and Outstanding Capital*
Huayra Minerals Corporation	British Columbia	Unlimited common shares	101 common shares
Agrogir Trading Ltd.	British Virgin Islands	50,000 shares	50,000 shares
AbraPlata Argentina SA	Argentina	Unlimited common, nominative, non-endorsable shares	37,633,058 common, nominative, non-endorsable shares
ABP Global Inc.	British Virgin Islands	1,000,000,000 shares	1,003 shares
ABP Diablillos Inc.	British Virgin Islands	1,000,000,000 shares	30,003 shares
Pacific Rim Mining Argentina S.A.	Argentina	Unlimited common, nominative, non-endorsable shares	2,956,960,487 common, nominative, non-endorsable shares
Aethon Minerals Corp.	Ontario	Unlimited common shares	27,633,333 common shares
AbraSilver US Resource Corp.	Delaware	10,000 shares of common stock	10,000 shares of common stock
AbraPlata Corporate Services Ltd.	British Columbia	Unlimited common shares	100 common shares
Condoryacu SRL	Argentina	Quotas representing 100% of the registered capital	3,000 Quotas

*No authorized share capital of any of the Subsidiaries is issued and outstanding that is not directly, or indirectly beneficially, owned by the Company.